SHARE PURCHASE AGREEMENT (LOCKED BOX) - DRAFT

THIS DRAFT IS CIRCULATED FOR DISCUSSION PURPOSES AS OF 2026-05-18 AND REMAINS SUBJECT TO FURTHER NEGOTIATION AND CIRCULATION. Prepared by Nelson and Sons LLP, foreign counsel to the Sellers, on the numbered-Clause locked-box precedent form. This document is a superseded negotiation-round precedent only, retained in the deal file for reference as to locked-box drafting style; it has no operative effect on the transaction ultimately consummated. This Share Purchase Agreement is made between the Sellers and the Buyer named in Schedule 1, on the terms and subject to the conditions set out in the Clauses below.

CLAUSE 1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, unless the context otherwise requires, the following words and expressions have the meanings given below where used in this Clause 1, and the further defined terms used throughout this Agreement have the meanings given to them in Schedule 10 (Definitions).

1.2 "Leakage" means any of the following to the extent occurring in the period from (and including) the Locked Box Date to (and excluding) Completion: dividends or distributions declared, paid, or made by the Company; management or monitoring fees, or any other payments of a similar nature, paid to any Seller or its Affiliates; waiver, deferral, or release of any amount owed to the Company by a Seller or its Affiliates; bonus, incentive, or other payments made to any director, officer, or employee in connection with the transaction; and any transaction between the Company and a Seller or its Affiliates otherwise than on arm's-length terms.

1.3 "Permitted Leakage" means the items, and only the items, set out in Schedule 2 (Permitted Leakage), in each case not exceeding the amount specified in Schedule 2 for that item.

1.4 "Locked Box Date" means 2026-03-31, being the date to which the Locked Box Accounts are prepared and from which economic benefit and risk in the Company are treated as having passed to the Buyer notwithstanding that Completion occurs on a later date.

1.5 "Locked Box Accounts" means the balance sheet of the Company as at the Locked Box Date, agreed between the parties and annexed as Schedule 3.

1.6 "Completion" means completion of the sale and purchase of the Shares in accordance with Clause 8.

1.7 "Ticking Fee" has the meaning given in Clause 6.

1.8 Every further term used with a capital initial letter in this Agreement and not defined in this Clause 1 has the meaning given to it in Schedule 10 (Definitions).

CLAUSE 2. SALE AND PURCHASE

2.1 The Sellers shall sell, and the Buyer shall buy, the Shares free from all Encumbrances and together with all rights attaching to them as at the Locked Box Date.

2.2 The Buyer shall not be entitled to rescind or terminate this Agreement in respect of any Leakage other than as provided in Clause 4.

CLAUSE 3. CONSIDERATION

3.1 The consideration for the Shares is a fixed amount calculated as the agreed enterprise value, minus Net Debt as shown in the Locked Box Accounts (191,000,000.00 as at the Locked Box Date Net Debt line), plus or minus the excess or shortfall of Working Capital as shown in the Locked Box Accounts (27,600,000.00 as at the Locked Box

Date Working Capital line) against the agreed Target Working Capital set out in Schedule 4, plus the Ticking Fee accrued under Clause 6 (the "Consideration").

3.2 The Consideration is FIXED as at signing and is not subject to adjustment by reference to the Company's actual balance sheet at Completion. No completion accounts, closing statement, or post-Completion true-up of any kind shall be prepared under this Agreement; the Locked Box Accounts are the sole and final reference point for the financial position of the Company for purposes of calculating the Consideration.

3.3 The Consideration is payable in full in cash at Completion, subject only to any escrow arrangement separately agreed in Schedule 5.

CLAUSE 4. LEAKAGE COVENANT

4.1 Each Seller covenants with the Buyer that, other than Permitted Leakage, no Leakage has occurred, or will occur, in the period from the Locked Box Date to Completion.

4.2 The items of Permitted Leakage, and the maximum amount permitted for each, are as follows (Schedule 2):

Permitted Leakage Item	Maximum Amount
board-approved monitoring fee accrual	150,000.00
permitted intercompany cash-pooling sweep	300,000.00

4.3 If any Leakage (other than Permitted Leakage) occurs, each Seller shall pay to the Buyer, on a pound-for-pound basis, an amount in cash equal to the value of such Leakage, promptly upon written demand.

4.4 The Buyer's sole remedy for Leakage is the covenant in this Clause 4; no adjustment is made to the Consideration itself in respect of Leakage.

4.5 For the avoidance of doubt, Leakage includes each of the following categories, in addition to the general definition at Clause 1.2:

Category
dividends or distributions
management/monitoring fees
intercompany-loan waivers
bonus payments
non-arm's-length transactions

CLAUSE 5. CONDUCT OF BUSINESS PENDING COMPLETION

The Company shall not, and shall procure that none of its Subsidiaries shall, between the Locked Box Date and Completion, save as expressly permitted by this Agreement, as disclosed in the Disclosure Letter, as required by applicable law or by a governmental or regulatory authority, or with the prior written consent of the Purchaser (such consent not to be unreasonably withheld or delayed), do or omit to do, or permit or suffer to be done or omitted, any of the following things. During the same period, the Company shall procure that the business of the Company and its Subsidiaries is carried on in the ordinary and usual course, consistent with past practice and with prudent business conduct, and the Company shall use reasonable endeavours to preserve intact the business, assets, goodwill, organisation and relationships of the Company and its Subsidiaries and to keep available the services of their senior management and other key employees. Without limiting the generality of the foregoing, and save as aforesaid:

(a) incur, create, assume, guarantee, or otherwise become liable, whether directly or indirectly, in respect of any indebtedness, borrowing, financial accommodation, or other financial liability, whether actual or contingent, other than any indebtedness incurred in the ordinary course of business consistent with past practice and on arm's length

terms, and any refinancing of existing indebtedness on terms no less favourable to the relevant obligor than the existing indebtedness being refinanced. For the avoidance of doubt, the issue of any debt security, the execution of any finance lease or hire-purchase arrangement, the giving of any guarantee, indemnity, comfort letter or similar assurance, and the incurring of any deferred purchase price or similar obligation shall each be treated as the incurring of indebtedness for the purposes of this sub-clause.

(b) sell, transfer, lease, license, assign, convey, or otherwise dispose of, or agree to sell, transfer, lease, license, assign, convey, or otherwise dispose of, any asset, property, business, or undertaking of the Company or any of its Subsidiaries, whether by a single transaction or a series of related transactions, other than disposals of obsolete, surplus, or redundant assets in the ordinary course of business consistent with past practice, and disposals of assets on arm's length terms for fair value where the value of the assets disposed of, individually or in aggregate, is not material in the context of the business of the Company and its Subsidiaries taken as a whole. For the avoidance of doubt, this sub-clause applies to intellectual property and other intangible assets as it applies to tangible assets, and includes the grant of any option, right of pre-emption, or other right to acquire any such asset.

(c) enter into, amend, vary, terminate, repudiate, or waive any material right under, or give or receive any notice to terminate, any contract, agreement, arrangement, commitment, or understanding (whether written or oral) that is material to the business or financial condition of the Company and its Subsidiaries taken as a whole, in each case otherwise than in the ordinary course of business consistent with past practice. For the avoidance of doubt, any contract, agreement, arrangement, commitment, or understanding that is reasonably expected to involve aggregate payments or receipts of a material amount, or to remain in force for more than twelve months from the date of its entry into, shall be treated as material for the purposes of this sub-clause.

(d) hire, appoint, promote, or terminate the employment or engagement of, or change the terms of employment or engagement of, any director, officer, senior employee, or other key person of the Company or any of its Subsidiaries, or commit the Company or any of its Subsidiaries to any new or enhanced severance, redundancy, change of control, retention, bonus, or other incentive arrangement with any such person, other than the hiring of employees in the ordinary course of business consistent with past practice to fill a vacancy arising after the Locked Box Date, the termination of employment for misconduct or poor performance in accordance with due process, and changes in terms of employment required by law or by the express terms of a contract of employment existing on the Locked Box Date. For the avoidance of doubt, the Company shall not, and shall procure that none of its Subsidiaries shall, increase the base salary, bonus potential, pension contributions, or other benefits of any director, officer, senior employee, or other key person except as required by the terms of a binding arrangement existing on the Locked Box Date.

(e) declare, make, pay, or resolve to declare, make, or pay, any dividend, distribution, or other return of value or capital, whether in cash or in kind, to the shareholders of the Company or any of its Subsidiaries or to any other person, or authorise, incur, or permit any Leakage, in each case otherwise than as may be expressly permitted by the covenant regarding Leakage contained elsewhere in this Agreement. For the avoidance of doubt, this sub-clause shall not be taken to extend, restrict, or otherwise affect the scope or operation of that covenant, and neither the Company nor any of its Subsidiaries shall make any such dividend, distribution, or return otherwise than through the

mechanisms, and subject to the limitations, set out in this Agreement.

(f) amend, vary, restate, or adopt any new version of the memorandum of association, articles of association, or other constitutional or organisational documents of the Company or any of its Subsidiaries, or pass or propose any resolution of the shareholders of the Company or any of its Subsidiaries having or potentially having any such effect, or take any action to change the legal form, jurisdiction of incorporation, or registered name of the Company or any of its Subsidiaries. Without limiting the generality of the foregoing, the Company shall not, and shall procure that none of its Subsidiaries shall, take any step or pass any resolution with a view to the winding up, liquidation, administration, or dissolution of the Company or any of its Subsidiaries.

(g) incur, authorise, or commit to incur any capital expenditure, or enter into any contract, commitment, or arrangement in respect of any capital expenditure, otherwise than in accordance with the capital expenditure budget most recently agreed between the Company and the Purchaser before the Locked Box Date or, failing any such agreed budget, the capital expenditure budget most recently approved by the board of directors of the Company before the Locked Box Date, in each case as the same may be amended from time to time with the prior written consent of the Purchaser. The Company shall not, and shall procure that none of its Subsidiaries shall, structure any proposed capital expenditure, or any proposed contract or commitment in respect of capital expenditure, so as to avoid the application of this sub-clause.

(h) commence, institute, settle, compromise, withdraw from, abandon, or agree to the settlement or compromise of, any material litigation, arbitration, adjudication, mediation, investigation, or other legal, administrative, or regulatory proceeding, whether actual or threatened, involving or affecting the Company or any of its Subsidiaries, or submit, or agree to submit, any such matter to any form of alternative dispute resolution, other than the settlement of any claim in the ordinary course of business consistent with past practice where the amount payable by the Company or its relevant Subsidiary in connection with such settlement is not material in the context of the business of the Company and its Subsidiaries taken as a whole, and a defence of proceedings in a manner that does not involve the admission of liability or any material adverse consequence. The Company shall notify the Purchaser in writing promptly after becoming aware of the commencement or threatened commencement of any such material proceeding.

(i) make, adopt, or change any accounting policy, practice, principle, or method applied by the Company or any of its Subsidiaries, or make any change in the manner in which the books, accounts, or records of the Company or any of its Subsidiaries are kept, other than any change required by law or regulation, any change required by an applicable accounting standard or generally accepted accounting principle, or any change necessary to ensure that the books, accounts, and records continue to present a true and fair view of the business. The Company shall ensure that the accounting policies applied in the preparation of the Locked Box Accounts continue to be applied on a consistent basis throughout the period from the Locked Box Date to Completion.

(j) create, grant, assume, incur, or permit to subsist any Encumbrance over or in respect of any of the assets, properties, rights, revenues, or undertakings of the Company or any of its Subsidiaries, whether now owned or hereafter acquired, other than Encumbrances arising by operation of law in the ordinary course of business for amounts that are not yet due or that are being contested in good faith, and any Encumbrance permitted by the terms

of this Agreement. For the avoidance of doubt, this sub-clause shall apply to any Encumbrance created or arising in respect of any asset or undertaking that is the subject of any disposal permitted by this Agreement.

Save as expressly permitted by this Agreement, from the date of this Agreement until Completion, the Sellers undertake to the Buyer that the Sellers shall procure that each Group Company carries on its business in the ordinary and usual course and, without the prior written consent of the Buyer, such consent not to be unreasonably withheld or delayed and to be deemed given if the Buyer has not notified the Sellers in writing of its decision within ten Business Days of receipt of a written request for consent, the Sellers shall not, and shall procure that no Group Company shall:

(a) amend, repeal or adopt any constitutional document of a Group Company;

(b) issue, allot, transfer, redeem, purchase or cancel any shares, loan notes or other securities of a Group Company, or grant any option, warrant or other right over, or enter into any agreement in respect of, any such shares, loan notes or securities;

(c) declare, make or pay any dividend or other distribution, whether in cash or in kind, to any person;

(d) incur or commit to incur any capital expenditure otherwise than in the ordinary and usual course of trading and in accordance with the budget disclosed in the Disclosure Letter;

(e) enter into, vary, renew, extend, terminate or waive any material contract or arrangement otherwise than in the ordinary and usual course of trading on arm's length terms;

(f) acquire, dispose of, lease, licence or create any encumbrance over any material asset or business of a Group Company;

(g) borrow or lend any money, issue or guarantee any indebtedness, or grant any security or indemnity, otherwise than in the ordinary and usual course of trading;

(h) make or change any tax election, settle or compromise any tax liability, or make any claim for relief from taxation other than in the ordinary and usual course of trading;

(i) commence, withdraw, settle or compromise any litigation, arbitration, mediation or other dispute, or make any admission of liability, except in respect of claims handled by insurers;

(j) make any change to the accounting policies, practices or methods applied by any Group Company;

(k) take any step towards the winding up, dissolution or administration of any Group Company or enter into any scheme, arrangement or compromise with creditors; or

(l) enter into any transaction with any of the Sellers or any affiliate of any of the Sellers otherwise than on arm's length terms.

Notwithstanding the restrictions set out in the preceding paragraph, the Sellers may, and shall procure that each Group Company may, take any of the following actions without the consent of the Buyer:

(a) the continuation of the business of each Group Company in the ordinary and usual course of trading, including the purchase and supply of goods and services, the maintenance of normal levels of inventory and receivables, and the payment of trade creditors in accordance with their usual payment terms;

(b) anything required to be done by law, by a court, by a Governmental Authority or by any other competent regulatory authority, or required to avoid a breach of any legal or regulatory obligation;

(c) anything required to be done under or pursuant to any contract, agreement, arrangement or commitment disclosed in the Disclosure Letter, in each case in accordance with the terms of such contract, agreement, arrangement or commitment and not for the purpose of circumventing the restrictions set out above;
(d) taking any action reasonably necessary to protect the health and safety of any individual or to prevent material damage to any asset or to the environment, including emergency measures taken in response to any accident, incident or unforeseen event, provided that the Sellers shall notify the Buyer of any action taken pursuant to this sub-paragraph as soon as reasonably practicable after taking it;
(e) any action expressly contemplated by this Agreement, including the entry into and performance of any transaction document referred to in this Agreement and any action required to be taken at Completion; and
(f) the renewal of any policy of insurance of any Group Company on substantially the same terms, including the scope and limits of cover and the applicable excesses, as the policy being renewed, and the payment of any premium due in respect of such renewal.
From the date of this Agreement until Completion, each Seller shall, and shall procure that each Group Company shall, afford to the Buyer and its officers, employees, agents, and professional advisers reasonable access during normal business hours to the books, records, accounts, premises, and senior management of each Group Company for the purpose of transition planning in connection with the Transaction, subject to the following:
(a) the Buyer shall give reasonable notice to the relevant Group Company before exercising any right of access under this paragraph 1;
(b) such access shall not unreasonably disrupt the business or operations of the relevant Group Company;
(c) the Buyer and its officers, employees, agents, and professional advisers shall comply with all reasonable security, confidentiality, and data protection requirements of the relevant Group Company;
(d) the relevant Group Company may require that any such access be supervised by one or more of its officers or other nominated representatives;
(e) the Buyer shall not, and shall procure that its officers, employees, agents, and professional advisers shall not, communicate with the auditors, bankers, or insurers of any Group Company in connection with the exercise of any right of access under this paragraph 1 without the prior written consent of the relevant Group Company; and
(f) the rights of access under this paragraph 1 are without prejudice to, and are in addition to, any other rights of access to information conferred on the Buyer under this Agreement or any other agreement.
The rights of access granted under paragraph 1 shall not entitle the Buyer or its officers, employees, agents, or professional advisers to require any Group Company to disclose or produce any document or information:
(a) which is subject to legal professional privilege;
(b) the disclosure of which would constitute a breach of applicable law or regulation, a breach of a court order, or a breach of any duty of confidentiality owed to any third party;
(c) which relates exclusively to the internal affairs or commercial arrangements of any Seller or of any affiliate of a Seller other than a Group Company; or
(d) which is not reasonably necessary for the purpose of transition planning.
Each Seller shall keep the Buyer fully and promptly informed in writing of any material development, change,

event, or circumstance affecting the business, assets, financial condition, or prospects of any Group Company which arises between the date of this Agreement and Completion, and in particular (but without limitation) of:

(a) any material litigation, arbitration, regulatory investigation, or dispute threatened or commenced against or otherwise affecting any Group Company;

(b) any material breach, termination, or threatened termination of any customer, supply, or other material contract to which any Group Company is a party or by which any Group Company is bound;

(c) any material change in the financial condition, trading position, or prospects of any Group Company;

(d) any proposed or actual change to the composition of the board of directors or senior management of any Group Company; and

(e) any matter which, had it arisen prior to the date of this Agreement, would have been required to be disclosed to the Buyer under this Agreement or would have constituted a breach of any of the Sellers' undertakings or covenants in this Agreement.

The obligation on the Sellers under paragraph 3 is distinct from, in addition to, and without prejudice to, the Leakage covenant and the conduct-of-business restrictions set out elsewhere in this Clause and in this Agreement, and for the avoidance of doubt:

(a) the provision of any information to the Buyer pursuant to paragraph 3 shall not operate as a waiver of, or release from, any condition to Completion or any right or remedy available to the Buyer under this Agreement; and

(b) no information provided by the Sellers pursuant to paragraph 3 shall constitute or be treated as a representation or warranty given by any Seller, except to the extent expressly provided in this Agreement.

CLAUSE 6. TICKING FEE

6.1 To compensate the Sellers for the economic benefit of the Company between the Locked Box Date and Completion, the Consideration includes a Ticking Fee accruing at a rate of 6.000% per annum on the Consideration (before the Ticking Fee itself), calculated on an actual/365 day-count basis, for the period from the Locked Box Date to (and including) Completion.

6.2 The Ticking Fee is the Sellers' sole compensation for the interim period; no other adjustment, true-up, or accounting for actual performance of the Company during that period is made under this Agreement.

CLAUSE 7. CONDITIONS TO COMPLETION

7.1 Completion is conditional on satisfaction, or waiver in accordance with Schedule 6, of each of the Conditions set out in Schedule 6 (Conditions to Completion).

CLAUSE 9. COMPLETION

9.1 Completion shall take place on the date falling five Business Days after satisfaction of the Conditions in Schedule 6, at the offices of the Buyer's solicitors, or at such other place as the parties agree.

9.2 At Completion the Sellers shall deliver, and the Buyer shall deliver or procure delivery of, the documents and actions set out in Schedule 7 (Completion Deliverables), and the Buyer shall pay the Consideration in accordance with Clause 3.

CLAUSE 10. WARRANTIES BY THE SELLERS

10.1 Each Seller warrants to the Buyer, in the terms set out in Schedule 8 (Warranties), as at the date of this

Agreement and as at Completion by reference to the facts and circumstances then existing.

10.2 Each Warranty is a separate warranty and is not limited or restricted by reference to any other Warranty or any other term of this Agreement.

CLAUSE 11. LIMITATION OF SELLERS' LIABILITY

11.1 The Sellers' aggregate liability for a claim under the Warranties or the Tax Covenant is limited to the Retained Amount, the balance of any such claim being recoverable only against the W&I Policy in accordance with Clause 12.

11.2 No Seller is liable for a claim under the Warranties to the extent the matter giving rise to it is fairly disclosed in the Disclosure Letter.

CLAUSE 12. WARRANTY AND INDEMNITY INSURANCE

(Procurement of W&I Policy)

The Buyer has procured, and has entered into, a warranty and indemnity insurance policy (the "W&I Policy") in connection with this Agreement with a reputable insurance provider. The W&I Policy provides cover to the Buyer in respect of:

(a) claims made by the Buyer against the Sellers for breach of the Sellers' Warranties; and

(b) claims made by the Buyer against the Sellers under the Tax Covenant.

(Limitation of Sellers' Liability)

Notwithstanding any other provision of this Agreement, the aggregate liability of the Sellers in respect of all claims for breach of the Sellers' Warranties and all claims under the Tax Covenant shall be limited to the Retained Amount. The Sellers shall have no liability whatsoever in respect of any such claims above the Retained Amount, and the risk of all such claims above the Retained Amount shall be borne solely by the insurer under the W&I Policy, with the Buyer's sole recourse in respect of such excess being against the insurer under the W&I Policy in accordance with its terms.

(No Amendment of W&I Policy)

The Buyer shall not, and shall procure that none of its affiliates or any person acting on its behalf shall, amend, modify, vary, waive, terminate or otherwise change the terms of the W&I Policy, or agree to do any of the foregoing, in any manner which is materially prejudicial to the Sellers, without the prior written consent of the Sellers (such consent not to be unreasonably withheld or delayed).

(Waiver of Subrogation)

The Buyer shall procure that the W&I Policy includes an express waiver by the insurer of all rights of subrogation against the Sellers and their respective directors, officers, employees, agents, advisers, affiliates and successors in title, save that such waiver shall not apply in respect of any claim which arises as a result of the fraud of the relevant Seller.

(Cooperation)

The Sellers shall, and shall procure that each of their respective directors, officers, employees, agents and advisers shall, cooperate fully with the Buyer and the insurer under the W&I Policy in connection with any claim made, or proposed to be made, under the W&I Policy, including by:

(a) providing, or procuring the provision of, such information, documents and records in their possession or control as the Buyer or the insurer may reasonably request in connection with any such claim;
(b) making available, at reasonable times and on reasonable notice, such directors, officers, employees, agents and advisers as the Buyer or the insurer may reasonably require for the purposes of investigating, evaluating, defending, negotiating or settling any such claim;
(c) providing all reasonable assistance in connection with the preparation, submission and prosecution of any such claim, including the provision of any evidence, documents, witness statements or other materials reasonably required by the Buyer or the insurer;
(d) notifying the Buyer promptly in writing upon becoming aware of any matter which could reasonably be expected to give rise to a claim for breach of the Sellers' Warranties or under the Tax Covenant;
(e) refraining from taking any action which could reasonably be expected to prejudice the Buyer's ability to make, or the insurer's ability to consider, any claim under the W&I Policy; and
(f) taking all such other reasonable actions as the Buyer or the insurer may reasonably request in connection with any such claim.
The Buyer shall reimburse the Sellers for all reasonable out-of-pocket costs and expenses (including legal fees) incurred by the Sellers in complying with their obligations under this clause.
(Access to W&I Policy)
The Buyer shall provide the Sellers with a copy of the W&I Policy promptly upon the execution of this Agreement and shall keep the Sellers reasonably informed of the status of any claim made under the W&I Policy, including by providing the Sellers with copies of any material correspondence with the insurer in relation to any such claim, save to the extent that any such correspondence is subject to legal privilege or would reasonably be expected to be prejudicial to the position of the Buyer or the insurer in respect of any such claim.
Claims notification procedure
(a) The Buyer shall, in accordance with the terms of the Policy and within any time limit prescribed by the Policy, give notice to the Insurer of any Warranty Claim and of any matter, fact, event or circumstance that is or may reasonably be expected to give rise to a Warranty Claim.
(b) Any such notice shall be in writing and shall include, to the extent then known to the Buyer, a reasonable description of the Warranty Claim, the grounds on which it is made and the amount claimed.
(c) The Buyer shall provide the Insurer with such further information, documents and assistance as the Insurer may reasonably require in connection with the investigation, evaluation and defence of any claim under the Policy, in each case in accordance with the terms of the Policy.
(d) All notifications, communications and information in respect of any claim under the Policy shall be given by the Buyer to the Insurer, and the Buyer shall not be required to give any notification or communication in respect of any claim under the Policy to the Sellers.
(e) The Sellers shall have no involvement in, and no responsibility or liability in respect of, the notification to the Insurer or the prosecution of any claim under the Policy, and the Buyer shall look solely to the Insurer for payment in respect of any Warranty Claim to the extent that the Retained Amount has been exhausted.

Non-vitiation

(a) The Policy shall not be vitiated, avoided, rescinded, repudiated or otherwise rendered invalid or unenforceable, and the Insurer shall not be entitled to refuse to pay, or to reduce, any claim under the Policy, by reason of any non-disclosure, misrepresentation, inaccuracy or omission made by or on behalf of the Sellers in connection with the placement or negotiation of the Policy, except to the extent that such non-disclosure, misrepresentation, inaccuracy or omission was made fraudulently.

(b) The Sellers shall have no liability to the Buyer in respect of any shortfall resulting from the avoidance, rescission, repudiation or non-payment of the Policy by the Insurer on the grounds of any non-disclosure, misrepresentation, inaccuracy or omission other than a fraudulent one.

(c) For the avoidance of doubt, nothing in this paragraph shall limit any right or remedy of the Buyer against the Insurer under the Policy or at law, including any right to contest an avoidance, rescission or repudiation by the Insurer.

Sole recourse

(a) Once the Retained Amount has been exhausted, the Buyer's sole and exclusive remedy in respect of any Warranty Claim shall be against the Insurer under the Policy, and the Sellers shall have no liability in respect of any Warranty Claim.

(b) Without limiting the preceding paragraph, the Buyer shall not be entitled to bring any claim, action or proceeding against the Sellers in respect of any Warranty Claim after the Retained Amount has been exhausted, whether under this Agreement, at common law, in equity or under any statute, except in the case of fraud.

(c) For the avoidance of doubt, nothing in this paragraph shall limit any liability of the Sellers in respect of any matter that is not a Warranty Claim, and no failure or refusal by the Insurer to pay all or any part of a claim under the Policy shall operate to revive or increase the Sellers' liability in respect of any Warranty Claim.

Severability and continuing obligations

(a) If any provision of this Section is or becomes invalid, illegal or unenforceable in any respect under the law of any jurisdiction, the validity, legality and enforceability of the remaining provisions of this Section shall not be affected or impaired, and the remaining provisions shall be construed as if such invalid, illegal or unenforceable provision were omitted, save that if any provision is capable of being modified so as to render it valid, legal and enforceable, such provision shall be deemed modified to the minimum extent necessary for that purpose.

(b) The availability or unavailability of insurance proceeds under the Policy, in whole or in part, for any reason, shall not affect the validity or enforceability of any provision of this Agreement, or the Sellers' obligations under any provision of this Agreement, save that nothing in this paragraph shall be construed as imposing on the Sellers any liability in respect of a Warranty Claim in excess of the Retained Amount.

CLAUSE 13. TAX COVENANT

The Sellers covenant to pay to the Buyer an amount equal to any Tax Liability of the Company which arises from an Event occurring, or from income, profits or gains earned, accrued or received, on or before Completion, to the extent that such Tax Liability is not reflected or reserved against in the Locked Box Accounts.

The Sellers' covenant to pay Tax Liabilities under this Tax Covenant shall not apply to any Tax Liability: (a) to the

extent that a provision or reserve in respect of that Tax Liability is reflected in the Locked Box Accounts; (b) to the extent that it arises from any act, omission or transaction carried out after Completion by the Buyer or any member of the Buyer's Group otherwise than in the ordinary course of business of the Company; and (c) to the extent that it arises from any change in law, or in any published practice of any Tax Authority, made after Completion, whether or not the change purports to have effect before Completion.

The amount of any Tax Liability to which the Sellers' covenant under this Tax Covenant applies shall be paid by the Sellers to the Buyer in cash in immediately available funds on the later of: (a) five Business Days after the date on which the Buyer delivers to the Sellers a written demand specifying the amount of the Tax Liability and the grounds on which it is claimed to be recoverable under this Tax Covenant; and (b) ten Business Days before the date on which the Tax Liability falls due for payment.

Tax Claims

For the purposes of this Clause, Tax Claim means any claim, assessment, notice, demand, enquiry, investigation, audit or other proceeding in respect of Taxes made or threatened by or with any Tax Authority.

The Buyer shall, as soon as reasonably practicable and in any event within ten Business Days of becoming aware of the existence of any Tax Claim, give written notice to the Sellers. Such notice shall set out the nature of the Tax Claim, the amount assessed or threatened (if known) and the basis on which it is made, and shall be accompanied by copies of all material correspondence and documents in the possession or control of the Buyer or any member of the Group relating to the Tax Claim.

The Buyer shall specify in the notice given in accordance with the preceding paragraph a period, which shall not be less than ten Business Days save where the Buyer is required to take action in relation to the Tax Claim on a shorter timetable, within which the Sellers may elect to assume responsibility for the conduct of the Tax Claim. If the Buyer does not specify such a period, the Sellers may elect to assume responsibility for the conduct of the Tax Claim at any time within twenty Business Days of receipt of the Buyer's notice.

If the Sellers give written notice to the Buyer within the period specified in the Buyer's notice or, if no such period was specified, within twenty Business Days of receipt of the Buyer's notice, that they elect to assume responsibility for the conduct of the Tax Claim:

(a) the Sellers shall be entitled, at their own cost and expense, to conduct, defend, contest, negotiate, settle or otherwise dispose of the Tax Claim in their absolute discretion, acting in good faith and in a commercially reasonable manner;

(b) the Sellers shall keep the Buyer reasonably informed in writing of the progress of the Tax Claim and shall, not less than five Business Days before the taking of any material step or the making of any material decision in relation to the Tax Claim, provide the Buyer with written details of the step or decision proposed to be taken and shall take into account any reasonable comments made by the Buyer in relation to such details;

(c) the Buyer shall, and shall procure that each member of the Group shall, provide the Sellers and their professional advisers with access to the books, records, accounts and premises of the relevant member of the Group and to its officers, employees and advisers as the Sellers may reasonably require in connection with the conduct of the Tax Claim, acting reasonably and on reasonable notice;

(d) the Sellers shall reimburse the Buyer, on demand, for all reasonable costs and expenses incurred by the Buyer or any member of the Group in providing access and assistance in accordance with paragraph (c) above;

(e) no settlement, compromise or other disposal of the Tax Claim shall be made by the Sellers without the prior written consent of the Buyer, such consent not to be unreasonably withheld or delayed, save where the Sellers are required to make such settlement, compromise or disposal by applicable law or by the requirements of any Tax Authority; and

(f) the Sellers shall not take or omit to take any action in relation to the Tax Claim which could reasonably be expected to have a material adverse effect on the Buyer or on any member of the Group in respect of any period or matter other than the period or matter to which the Tax Claim directly relates.

If the Sellers do not elect to assume responsibility for the conduct of the Tax Claim within the period specified in the Buyer's notice or, if no such period was specified, within twenty Business Days of receipt of the Buyer's notice, or having so elected fail to conduct or pursue the Tax Claim diligently, the Buyer shall be entitled, but shall not be obliged, to assume responsibility for the conduct of the Tax Claim and may settle, compromise, resist, defend or otherwise dispose of the Tax Claim in such manner and on such terms as the Buyer considers appropriate in its absolute discretion. Any settlement, compromise or other disposal made by the Buyer in accordance with this paragraph shall be binding on the Sellers for all purposes under this Agreement.

Tax Warranties

Each of the Sellers warrants to the Buyer, in each case as a separate and independent warranty and in addition to and without prejudice to the warranties set out in the Warranties Schedule, that in relation to each member of the Group:

(a) all Tax Returns required to be made or filed by or in respect of each member of the Group in respect of all periods ending on or before the Locked Box Accounts Date and required to be made or filed on or before the date of this Agreement have been duly and punctually made or filed in accordance with all applicable laws and with the requirements of the relevant Tax Authorities, and all Taxes due and payable in respect of such periods, whether or not shown as due on any such Tax Returns, have been duly and punctually paid;

(b) there is no outstanding or, to the actual knowledge of the Sellers, threatened dispute, assessment, claim, investigation, enquiry, audit or other proceeding in respect of Taxes in relation to any member of the Group or any of their respective assets, properties, businesses or activities, and no member of the Group has received any written notice or other communication from any Tax Authority indicating that any such dispute, assessment, claim, investigation, enquiry, audit or other proceeding has been or may be commenced; and

(c) each member of the Group is resident for Tax purposes solely in the jurisdiction in which it is incorporated or otherwise established, is not resident for Tax purposes in any other jurisdiction and does not have and has never had a permanent establishment, branch, agency or other taxable presence in any other jurisdiction.

Tax Refunds

If, after Completion, the Buyer or any member of the Group receives or becomes entitled to receive any refund, remission, repayment, credit or set-off of Taxes, or any interest on any such refund, remission, repayment, credit or set-off, in respect of any period ending on or before the Locked Box Accounts Date, or in respect of any period beginning before and ending after the Locked Box Accounts Date to the extent that such refund, remission,

repayment, credit or set-off relates on a just and reasonable apportionment to the part of such period ending on the Locked Box Accounts Date, the Buyer shall:

(a) notify the Sellers in writing as soon as reasonably practicable and in any event within ten Business Days of becoming aware of such receipt or entitlement;

(b) provide the Sellers with such information, documentation and assistance as the Sellers may reasonably request in connection with such refund, remission, repayment, credit or set-off;

(c) subject to the following paragraph, pay to the Sellers, within ten Business Days of the receipt or utilisation of such refund, remission, repayment, credit or set-off, an amount equal to the net amount of such refund, remission, repayment, credit or set-off, being the gross amount received or utilised less:

(i) all reasonable costs and expenses incurred by the Buyer or any member of the Group in obtaining or utilising such refund, remission, repayment, credit or set-off; and

(ii) all Taxes of any kind incurred by the Buyer or any member of the Group on or by reference to the receipt or utilisation of such refund, remission, repayment, credit or set-off; and

(d) if such refund, remission, repayment, credit or set-off is effected by way of a credit against or set-off against Taxes otherwise payable by the Buyer or any member of the Group, the Buyer shall be deemed for the purposes of this paragraph to have received such refund, remission, repayment, credit or set-off on the date on which such credit or set-off is applied or utilised.

The obligations of the Buyer under the preceding paragraph are conditional upon the receipt of the relevant refund, remission, repayment, credit or set-off in cleared funds or, where such refund, remission, repayment, credit or set-off is by way of a credit or set-off, upon the application or utilisation of such credit or set-off.

If the Sellers reasonably consider that the Buyer or any member of the Group is or may become entitled to any refund, remission, repayment, credit or set-off of Taxes to which the provisions of this Clause apply, the Sellers may request in writing that the Buyer seek to obtain such refund, remission, repayment, credit or set-off and the Buyer shall, at the cost of the Sellers, use all reasonable endeavours to obtain it and shall account to the Sellers for it in accordance with the provisions of this Clause.

VAT Group

(a) If the Company is or has been at any time a member of a value added tax group of which any Seller or any Affiliate of any Seller is or has been a member, and the Company ceases to be a member of that VAT group (whether at Completion or otherwise), each Seller shall procure that the Company is treated as a separate taxable person for the purposes of value added tax with effect from the date of cessation and that all notifications, elections, registrations and other steps required by the relevant Tax Authority in connection with that cessation are made or given promptly and in accordance with applicable law.

(b) Each Seller shall pay to the Buyer an amount equal to any liability for Tax (including any interest, penalty, surcharge or other charge) which is imposed on or incurred by the Company, or which the Company is otherwise required to pay to any Tax Authority, as a result of or in connection with the cessation described above, to the extent that such liability is attributable to any supply, input tax or other act, omission, transaction or event occurring on or before the date of cessation or to the Company's membership of the VAT group at any time on or before that date.

(c) If any liability for Tax described in this Clause is a liability of the VAT group for which the Company is jointly and severally liable with one or more other persons, the Sellers shall procure that such other person or persons satisfy that liability in the first instance and shall indemnify the Buyer against any part of that liability which the Company is required to pay, except to the extent that such part is attributable to any act or omission of the Company occurring after the date of cessation and not at the direction of the Sellers.

(d) Any liability of the Sellers under this Tax Covenant in respect of the matters described in this Clause shall be apportioned among the Sellers in proportion to their respective shareholdings in the Company, and each Seller shall bear only its apportioned share of that liability. For the avoidance of doubt, the liability of each Seller under this Tax Covenant is several and not joint.

Buyer's Tax Warranties

(a) The Buyer warrants to each Seller that:

(i) the Buyer is duly incorporated and validly existing under the laws of its country of incorporation and has full corporate power, authority and capacity to enter into and perform this Agreement and to complete the transactions contemplated by it;

(ii) the Buyer is resident for the purposes of taxation solely in the country of its incorporation and has no branch, agency, permanent establishment or other taxable presence outside that country through which any payment under this Agreement is effectively connected;

(iii) all payments to be made by the Buyer under this Agreement may be made without any deduction or withholding for or on account of Tax, and the Buyer is not required by any law, regulation or administrative practice of any Tax Authority to take any action, obtain any consent or give any notice in order to make any such payment free from any deduction or withholding;

(iv) the Buyer is acting as principal for its own account in entering into this Agreement and completing the transactions contemplated by it and is not acting as agent, nominee or trustee for any other person; and

(v) the Buyer has obtained all consents, clearances and approvals from any Tax Authority which are required in connection with the Buyer's entry into this Agreement and the performance and completion of the transactions contemplated by it.

(b) The warranties set out in this Clause are given by the Buyer solely for the purposes of enabling the Sellers to complete the transactions contemplated by this Agreement and are limited to the Buyer's own capacity and Tax residence. Nothing in this Clause shall be construed as a warranty by the Buyer as to the Tax affairs or liabilities of the Company or any Affiliate of the Company.

Preservation of Warranties

For the avoidance of doubt, nothing in this Tax Covenant shall limit, restrict or otherwise affect any claim that the Buyer may have under the Warranties in respect of any Tax matter, including any Tax matter not otherwise covered by this Tax Covenant. The rights of the Buyer under the Warranties are separate from, and in addition to, any rights of the Buyer under this Tax Covenant, and no provision of this Tax Covenant shall operate as a waiver or release of any claim under the Warranties.

CLAUSE 14. RESTRICTIVE COVENANTS

In this Section:

(a) "Protected Customers" means any person who, at any time during the period of two years ended on the Locked Box Accounts Date, was a customer or client of the Company or any member of the Group in respect of a Restricted Business, or had entered into a contract or arrangement with the Company or any member of the Group for the supply of products or services which form part of a Restricted Business;

(b) "Relevant Territory" means the United Kingdom and any other jurisdiction in which the Company or any member of the Group carried on business, or had customers or suppliers, at any time during the period of three years ended on the Locked Box Accounts Date;

(c) "Restricted Business" means any business which, at the Locked Box Accounts Date, was carried on by the Company or any member of the Group, and any business which is the same as, or is wholly or substantially similar to, any such business and which supplies, or is intended to supply, products or services of the same type as those supplied by the Company or any member of the Group at that date;

(d) "Restricted Employees" means any director, officer or employee of the Company or any member of the Group who, in relation to a Restricted Business, is or was engaged in a managerial, commercial, technical, financial, operational or similar senior role, or has or had access to information concerning the customers, pricing, strategy or financial affairs of the Company or any member of the Group, in each case as at Completion or at any time during the period of twelve months ended on the Locked Box Accounts Date;

(e) "Restricted Period" means the period of three years commencing on Completion and ending on the date falling three years after Completion.

Each Seller covenants with the Buyer that, during the Restricted Period, it shall not, and shall procure that no person acting on its behalf or at its direction shall, directly or indirectly, whether for its own account or for or on behalf of any other person, and whether as principal, agent, shareholder, director, officer, employee, consultant, partner, joint venturer, financier or otherwise, in each case in connection with any business which is a Restricted Business in the Relevant Territory:

(a) establish, carry on, own, operate, manage or control any such business;

(b) be engaged, concerned or interested in any such business;

(c) provide or make available any financial, managerial, advisory, administrative, technical, operational or other services or assistance to any such business;

(d) induce or encourage any person other than the Company or any member of the Group to establish or carry on any such business; or

(e) do, or procure or encourage any person to do, anything which is reasonably likely to cause any customer, supplier, distributor, agent, employee or other person dealing with the Company or any member of the Group in connection with a Restricted Business to cease, reduce or adversely alter its dealings with the Company or any member of the Group in connection with that business.

Each Seller covenants with the Buyer that, during the Restricted Period, it shall not, and shall procure that no person acting on its behalf or at its direction shall, directly or indirectly, whether for its own account or for or on behalf of any other person:

(a) solicit, entice, induce or encourage, or attempt to solicit, entice, induce or encourage, any Restricted Employee to leave the employment of the Company or any member of the Group, or to accept any office, employment or engagement with any person whomsoever;

(b) employ, engage, appoint or otherwise use the services of, or offer to employ, engage or appoint, any Restricted Employee, other than a person who has not been a Restricted Employee for a continuous period of twelve months ending on the date of such employment, engagement or appointment;

(c) solicit, canvas, approach or otherwise promote or offer any products or services to any Protected Customer with a view to selling, supplying or providing to that Protected Customer any products or services which are the same as or substantially similar to those supplied by the Company or any member of the Group in connection with a Restricted Business, or which would compete with any Restricted Business;

(d) otherwise seek to induce any Protected Customer to terminate, reduce or adversely alter its business relationship with the Company or any member of the Group in respect of a Restricted Business; or

(e) procure, assist or encourage any person to do any of the acts referred to in Paragraphs (a) to (d) above.

Nothing in the non-competition covenant in this Section shall prevent any Seller from:

(a) holding, as a passive investor only, any shares or securities in any company which carries on or is intended to carry on a Restricted Business in the Relevant Territory, provided that the aggregate number of shares or securities held by that Seller and any person acting on its behalf does not exceed five per cent. of the total issued share capital of that company, and neither that Seller nor any such person takes any active part in the management, operation or affairs of that company or that business, or seeks to influence or control the policies of that company or that business; or

(b) continuing to be engaged, concerned or interested in, or holding any office, appointment, shareholding or other right or interest in, any business which is disclosed in the Disclosure Letter, to the extent that such business is carried on as at the Locked Box Accounts Date and is not, after Completion, expanded into, or varied to include, any activity which would, but for this paragraph, constitute a breach of the non-competition covenant in this Section.

Nothing in the non-solicitation covenant in this Section shall prevent any Seller from:

(a) soliciting or employing any Restricted Employee who has not been an employee or officer of the Company or any member of the Group for a continuous period of at least twelve months at the time of such solicitation or employment;

(b) soliciting any Protected Customer in relation to any products or services which are not products or services of a type supplied by the Company or any member of the Group in connection with a Restricted Business, provided that such solicitation does not seek to induce the Protected Customer to terminate, reduce or adversely alter its business relationship with the Company or any member of the Group in respect of a Restricted Business; or

(c) carrying on any activity which is expressly permitted by the non-competition covenant in this Section.

Each Seller acknowledges and agrees with the Buyer that each of the covenants contained in this Section is reasonable and no more than is necessary to protect the legitimate interests of the Buyer in the goodwill of the Company and of the Group and in the confidential information relating to the Restricted Business to which the Buyer has or will have access as a result of its acquisition of the Company, and that the Buyer would not have

entered into this Agreement unless the Sellers had entered into each of those covenants.

The covenants in this Section are separate and independent. If any covenant or any part of a covenant is held to be invalid, illegal or unenforceable, in whole or in part, by any court of competent jurisdiction:

(a) that covenant or part shall, to the extent permitted by law, be deemed to be modified to the minimum extent necessary to render it valid and enforceable, and if it cannot be so modified it shall be severed from the remaining covenants; and

(b) the remaining covenants, and the remaining parts of any covenant which has been modified or partially severed, shall continue in full force and effect and shall not be affected by such invalidity, illegality or unenforceability.

The parties further agree that, if any restriction in this Section is found by any court of competent jurisdiction to be unenforceable as an unreasonable restraint of trade because it is too wide in its duration, geographic scope or scope of restricted activities, the court may reduce the duration, geographic scope or scope of restricted activities to such lesser extent as the court considers reasonable and enforce the covenant as so reduced. The parties intend that each restriction in this Section is divisible and may be enforced separately.

CLAUSE 15. CONFIDENTIALITY

15.1 Each party shall keep confidential the existence and terms of this Agreement and any Confidential Information it receives from the other, except to the extent disclosure is required by law, by a regulatory authority, or to that party's own professional advisers.

CLAUSE 16. ANNOUNCEMENTS

16.1 No party shall make an announcement concerning this Agreement without the prior written consent of the other, except an announcement required by law or by a regulatory or governmental authority.

CLAUSE 17. COSTS AND EXPENSES

17.1 Except as otherwise provided in this Agreement, each party shall bear its own costs and expenses incurred in connection with the negotiation, preparation and execution of this Agreement.

CLAUSE 18. NOTICES

18.1 A notice given under this Agreement is validly given if delivered personally, sent by internationally recognized overnight courier, or sent by email with confirmation of transmission, in each case to the address or email address set out on the signature pages, or such other address as a party notifies to the other in accordance with this Clause 18.

CLAUSE 19. ASSIGNMENT

19.1 No party may assign, transfer, mortgage, charge or otherwise dispose of any of its rights under this Agreement without the prior written consent of the other parties, except that the Buyer may assign its rights to an Affiliate or to a person providing debt or equity financing for the transaction, by way of security, without such consent.

CLAUSE 20. FURTHER ASSURANCE

20.1 Each party shall, at its own cost, do all things and execute all documents reasonably necessary to give full effect to this Agreement.

CLAUSE 21. ENTIRE AGREEMENT

21.1 This Agreement, together with the Schedules, constitutes the entire agreement between the parties in relation to

its subject matter and supersedes all prior agreements, arrangements and understandings between them, whether written or oral, relating to that subject matter.

CLAUSE 22. VARIATION

22.1 No variation of this Agreement is effective unless it is in writing and signed by or on behalf of each party.

CLAUSE 23. WAIVER

23.1 No failure or delay by a party in exercising a right or remedy under this Agreement operates as a waiver of that right or remedy, nor does a single or partial exercise of it preclude any further exercise.

CLAUSE 24. SEVERABILITY

24.1 If any provision of this Agreement is held to be invalid or unenforceable, the remaining provisions continue in full force and effect, and the parties shall negotiate in good faith to agree a replacement provision achieving as closely as possible the intended commercial effect of the invalid provision.

CLAUSE 25. COUNTERPARTS

25.1 This Agreement may be executed in any number of counterparts, each of which is an original, and all of which together constitute one instrument.

CLAUSE 26. THIRD PARTY RIGHTS

26.1 Save as expressly provided in Clause 12 in favour of the insurer under the W&I Policy, this Agreement does not confer a benefit on a person who is not a party to it, and no such person has a right to enforce a term of this Agreement.

CLAUSE 27. SET-OFF

27.1 The Buyer may not withhold or set off any amount owed to a Seller under this Agreement against any actual or alleged claim without the Seller's prior written consent, except as expressly provided in Clause 4.

CLAUSE 28. SELLERS' REPRESENTATIVE

28.1 Each Seller irrevocably appoints the Sellers' Representative named in Schedule 1 to act on its behalf for all purposes connected with this Agreement after Completion, including receipt of any notice or claim, and each other party may rely on an act of the Sellers' Representative as binding on every Seller.

CLAUSE 29. GOVERNING LAW

29.1 This Agreement, and any dispute or claim (including a non-contractual dispute or claim) arising out of or in connection with it or its subject matter, is governed by, and construed in accordance with, the law of England and Wales.

CLAUSE 30. DISPUTE RESOLUTION

30.1 Any dispute arising out of or in connection with this Agreement, including a dispute as to its existence, validity or termination, is referred to and finally resolved by arbitration under the Rules of the London Court of International Arbitration, which Rules are deemed incorporated by reference into this Clause 30. The seat of the arbitration is London, England, the tribunal is composed of three arbitrators, and the language of the arbitration is English.

CLAUSE 31. SCHEDULES

31.1 Schedule 1 - Parties.

31.2 Schedule 2 - Permitted Leakage.

31.3 Schedule 3 - Locked Box Accounts.

31.4 Schedule 4 - Target Working Capital.

31.5 Schedule 5 - Escrow.

31.6 Schedule 6 - Conditions to Completion.

31.7 Schedule 7 - Completion Deliverables.

31.9 Schedule 9 - Warranties.

31.10 Schedule 10 - W&I Insurance Policy Summary.

31.11 Schedule 11 - Definitions.

31.12 Schedule 12 - Guarantee by Buyer's Parent.

31.13 Schedule 13 - Disclosure Letter Mechanics.

[Draft 3 - subject to further comment from counsel to the Sellers - not for execution]

SCHEDULE 1. PARTIES

Sellers: as set out in the signature pages. Buyer: as set out in the signature pages. Sellers' Representative: Samantha Conley, acting through Nelson and Sons LLP.

SCHEDULE 3. LOCKED BOX ACCOUNTS

The Locked Box Accounts comprise the balance sheet of the Company as at the Locked Box Date Net Debt and Locked Box Date Working Capital reference lines described in Clause 3, agreed between the parties and annexed to the executed counterpart of this Agreement as a physical attachment to this Schedule 3.

SCHEDULE 4. TARGET WORKING CAPITAL

The Target Working Capital against which the Locked Box Date Working Capital line is compared for purposes of Clause 3.1 is the average of the Company's month-end Working Capital over the twelve months preceding the Locked Box Date, calculated on a basis consistent with the Locked Box Accounts.

SCHEDULE 5. ESCROW

No amount of the Consideration is held back in escrow under this Agreement unless the parties separately agree an escrow arrangement in writing prior to Completion, in which case this Schedule 5 is completed to record the escrow amount, the escrow agent and the release conditions so agreed, on the terms set out below.

Appointment of the Escrow Agent

At Completion, the Buyer and the Sellers shall jointly appoint an independent escrow agent (the "Escrow Agent") to act on the terms of this Schedule and the Escrow Agreement.

The Escrow Agent shall be a financial institution with a minimum capital and surplus of five hundred million United States dollars, incorporated or organised under the laws of the United Kingdom or the United States of America, and having no connection with the Buyer or any Seller, save for its appointment under this Schedule and the Escrow Agreement.

The Escrow Agent shall hold the Escrowed Funds as agent and stakeholder and not as trustee. The Escrow Agent's duties and obligations shall be limited to those expressly set out in this Schedule and the Escrow Agreement, and no duties or obligations shall be implied.

The Escrow Agent shall not be liable to the Buyer or the Sellers for any act, omission or failure to act in connection

with the Escrowed Funds except to the extent that the same is finally determined to constitute fraud, gross negligence or wilful default on the part of the Escrow Agent.

The Escrow Agreement

At Completion, the Buyer, the Sellers and the Escrow Agent shall enter into a written escrow agreement (the "Escrow Agreement") governing the terms on which the Escrow Agent holds, invests and releases the Escrowed Funds.

The Escrow Agent shall act only on instructions delivered to it in accordance with the Escrow Agreement. Where this Schedule or the Escrow Agreement requires the joint instruction of the Buyer and the Sellers, the Escrow Agent shall not act on the instruction of either party alone.

In the event of any conflict or inconsistency between the provisions of this Schedule and the provisions of the Escrow Agreement, the provisions of the Escrow Agreement shall prevail in respect of the matters governed by the Escrow Agreement, and the provisions of this Schedule shall prevail in all other respects.

The Buyer and the Sellers shall procure that the Escrow Agreement is duly executed and delivered by the Escrow Agent at Completion, and each of the Buyer, the Sellers and the Escrow Agent shall perform its obligations under the Escrow Agreement.

Deposit of the Escrowed Funds

At Completion, the Buyer shall pay the Escrowed Amount to the Escrow Agent in immediately available funds for deposit into the Escrow Account.

The Escrow Agent shall hold the Escrowed Funds in the Escrow Account pending release in accordance with this Schedule and the Escrow Agreement.

The Escrow Account shall be established by the Escrow Agent in its own name or in the name of its nominee as a segregated client account, separate from the monies and assets of the Escrow Agent and from the monies and assets of any other client of the Escrow Agent.

The Escrowed Funds shall not be used to satisfy any obligation of the Escrow Agent to any person, and the Escrow Agent shall procure that the Escrowed Funds are not subject to any lien, charge, set-off, counterclaim or other encumbrance in favour of the Escrow Agent or any third party.

Investment of the Escrowed Funds

Pending release of the Escrowed Funds in accordance with this Schedule and the Escrow Agreement, the Escrow Agent shall invest the Escrowed Funds in one or more of the following investments (the "Permitted Investments"):

(a) obligations of, or obligations guaranteed by, the government of the United Kingdom or the government of the United States of America, in each case having a term to maturity of not more than six months from the date of investment;

(b) certificates of deposit, time deposits or demand deposits with a banking institution organised under the laws of the United Kingdom or the United States of America having a minimum capital and surplus of five hundred million United States dollars, in each case having a term to maturity of not more than six months from the date of investment; or

(c) money market funds rated at least AAA by a recognised credit rating agency, which funds invest exclusively in

investments of the kind described in paragraphs (a) and (b) above.

The Escrow Agent shall invest the Escrowed Funds in Permitted Investments in accordance with joint written instructions delivered by the Buyer and the Sellers to the Escrow Agent at Completion, and thereafter in accordance with joint written instructions delivered from time to time.

If the Buyer and the Sellers fail to deliver joint written investment instructions to the Escrow Agent within three business days of receipt by them of a written request from the Escrow Agent for such instructions, the Escrow Agent may invest the Escrowed Funds in the Permitted Investments described in paragraph (a) above and shall be under no liability to the Buyer or the Sellers for any loss or diminution in value of the Escrowed Funds arising from any such investment, except to the extent of fraud, gross negligence or wilful default on the part of the Escrow Agent.

All Permitted Investments acquired pursuant to this paragraph shall be held in the name of the Escrow Agent or its nominee, shall be credited to the Escrow Account and shall form part of the Escrowed Funds.

Income on the Escrowed Funds

All interest, dividends and other income arising on or in respect of the Escrowed Funds (the "Income") shall be credited by the Escrow Agent to the Escrow Account and held as part of the Escrowed Funds pending release.

Pending release of the Escrowed Funds in accordance with this Schedule and the Escrow Agreement, the Income shall accrue for the benefit of the Sellers and the Buyer in equal shares.

On any release of all or part of the Escrowed Funds in accordance with this Schedule and the Escrow Agreement, the Escrow Agent shall at the same time release the Income in the same proportion as the release of the Escrowed Funds, and shall pay the Income so released:

(a) as to one half, to the Sellers; and

(b) as to one half, to the Buyer.

Each of the Sellers and the Buyer shall be solely responsible for its own taxation liabilities arising in respect of its share of the Income.

General

All fees, costs and expenses of the Escrow Agent in connection with the establishment, operation and administration of the Escrow Account and the Escrowed Funds shall be borne equally by the Buyer and the Sellers.

The provisions of this Schedule shall remain in full force and effect until the Escrowed Funds and all Income have been released in full in accordance with this Schedule and the Escrow Agreement.

Release of the Escrowed Amount at the end of the Retention Period

(a) On the expiry of the Retention Period, being twelve calendar months from the Completion Date, the Escrow Agent shall release the Escrowed Amount to the Sellers, unless a Claim is then outstanding.

(b) A Claim is outstanding for the purposes of this Schedule if, before the expiry of the Retention Period, the Buyer has delivered to the Sellers and the Escrow Agent a written notice of claim stating in reasonable detail the nature of the Claim and the amount claimed, and the Claim has not been withdrawn, compromised or finally determined by written agreement, arbitration or a court of competent jurisdiction.

(c) The Escrow Agent shall be obliged to make such release without requiring any further instruction from the Sellers or the Buyer, but may rely on any written direction given jointly by the Sellers and the Buyer.

Partial release where a Claim is outstanding

(a) Where a Claim is outstanding at the expiry of the Retention Period and the amount of that Claim is less than the Escrowed Amount, the Escrow Agent shall, at the expiry of the Retention Period, release to the Sellers that part of the Escrowed Amount which exceeds the Claim Amount, and shall retain the Claim Amount.

(b) The Claim Amount is the amount specified in the written notice of claim, unless the Sellers and the Buyer otherwise agree in writing.

(c) Upon the withdrawal, compromise or final determination of the Claim, the Escrow Agent shall release the Claim Amount, or the appropriate part of it, to the Sellers if the Claim is not upheld, or to the Buyer to the extent the Claim is upheld, as the case may be, with any balance of the Claim Amount being released to the Sellers.

Disagreement between the Sellers and the Buyer as to release

(a) If the Sellers and the Buyer disagree about whether any amount should be released, or about the amount to be released, from the Escrow Account, either the Sellers or the Buyer may refer the matter to the Escrow Agent.

(b) On any such reference, the Escrow Agent shall be authorised to follow its usual stakeholder procedure for holding and releasing disputed funds, and to continue to hold the disputed amount pending resolution of the matter.

(c) If the matter is not resolved through the Escrow Agent's stakeholder procedure, either the Sellers or the Buyer may refer the matter to the dispute resolution clause in this Agreement, and the Escrow Agent shall not be required to release the disputed amount except in accordance with a written agreement between the Sellers and the Buyer, a final order of a court or tribunal of competent jurisdiction, or as otherwise provided in the Escrow Agreement.

Escrow Agent's fees

(a) The fees and expenses of the Escrow Agent in connection with the establishment, operation and release of the Escrow Account shall be borne equally by the Sellers on the one hand and the Buyer on the other hand, unless the Escrow Agreement provides otherwise.

(b) Where the Sellers are more than one person, the Sellers shall be responsible for their half of such fees and expenses as between themselves in such proportions as they may agree, and failing agreement, in proportion to their respective interests in the Company.

SCHEDULE 6. CONDITIONS TO COMPLETION

Conditions to Completion

Each condition set out in this Schedule is for the benefit of the Buyer and may be waived in writing by the Buyer in its absolute discretion, unless the condition is incapable of being waived by law. Completion shall not occur unless each such condition has been satisfied or waived in accordance with this Agreement.

Antitrust and foreign investment approvals

(a) The condition set out in this paragraph is satisfied if all applicable waiting periods, including any extensions of any such waiting periods, under any antitrust, competition, merger control, investment screening, national security, foreign investment or other similar Law have expired or been terminated in respect of the transactions contemplated by this Agreement, and no prohibition, suspension, divestiture, restriction, condition or other similar impediment has been imposed by any Governmental Authority in connection with those transactions.

(b) Where any approval, authorisation, consent, clearance, exemption or other decision of any Governmental

Authority is required under any such Law in order for Completion to be capable of proceeding lawfully, the condition set out in this paragraph is satisfied only when that approval has been granted or deemed granted, is unconditional or is subject only to conditions that are not reasonably likely to have a material adverse effect on the Buyer's ability to acquire the Company or to carry on the business of the Company as conducted at the date of this Agreement, and remains in full force and effect at Completion.

(c) The Buyer shall be responsible for satisfying the condition set out in this paragraph and shall use reasonable endeavours to make, or cause to be made, all notifications, filings and applications required to obtain the expiry, termination or approval referred to in this paragraph. The Seller shall, and shall procure that the Company shall, provide such information, documents and cooperation as the Buyer may reasonably request in connection with those notifications, filings and applications.

Third-party consents

(a) The condition set out in this paragraph is satisfied if each material third-party consent, approval, authorisation, waiver or novation identified in the Disclosure Letter as a condition to Completion has been obtained or effected in writing, is unconditional or is subject only to conditions that are not reasonably likely to have a material adverse effect on the Buyer's ability to own the Company or to carry on the business of the Company as conducted at the date of this Agreement, and has not been revoked or materially modified at Completion.

(b) The Seller shall be responsible for satisfying the condition set out in this paragraph and shall use reasonable endeavours to obtain, or procure the obtaining of, each such consent, approval, authorisation, waiver or novation as soon as reasonably practicable and, in any event, on or before Completion. The Buyer shall provide such cooperation and information as the Seller may reasonably require in connection with any request for any such consent, approval, authorisation, waiver or novation.

No order or injunction

(a) The condition set out in this paragraph is satisfied if, at Completion, there is no order, injunction, judgment, decree, ruling, award or other decision of any court of competent jurisdiction or any Governmental Authority, whether temporary, preliminary or final, that is in effect and that restrains, enjoins, prohibits, prevents, delays or otherwise makes illegal the consummation of Completion or the performance of any of the transactions contemplated by this Agreement.

(b) The condition set out in this paragraph is not satisfied if any proceeding before any court of competent jurisdiction or any Governmental Authority is pending or, to the knowledge of the Seller, is threatened, in which any such order, injunction, judgment, decree, ruling, award or other decision is sought.

(c) Neither party is responsible for satisfying the condition set out in this paragraph, but each party shall use reasonable endeavours to resist any application, proceeding or other action seeking any such order, injunction, judgment, decree, ruling, award or other decision and shall not take any action that would reasonably be expected to result in the making or entry of any such order, injunction, judgment, decree, ruling, award or other decision.

Conditions to Completion

(a) Completion is conditional upon the satisfaction or waiver, on or before the Long Stop Date, of each of the conditions set out in paragraphs (b) and (c).

(b) The Sellers' Warranties set out in the Warranties Schedule shall remain true and accurate in all material respects at Completion as though the same had been repeated at Completion with reference to the facts and circumstances then subsisting.

(c) No event, change, circumstance, development or effect shall have occurred or arisen on or before Completion which constitutes a Material Adverse Change in relation to the Company.

Waiver

(a) Each party may, by a written instrument signed by or on behalf of that party, waive in whole or in part any condition to Completion which is for its own benefit.

(b) A waiver made under paragraph (a) shall be effective only to the extent set out in that written instrument and shall not operate as a waiver of any other condition to Completion or of any other provision of this Agreement.

Failure of Conditions

(a) If any condition to Completion has not been satisfied or waived on or before the Long Stop Date, either party may terminate this Agreement by written notice to the other party at any time on or after the Long Stop Date.

(b) Upon termination under paragraph (a), this Agreement shall cease to have effect and neither party shall have any liability to the other party in respect of this Agreement or its termination, except for the confidentiality obligations and the costs obligations, which shall survive termination in accordance with their terms.

Termination

(a) The Parties may terminate this Agreement before Completion by mutual written consent.

(b) Either Party may terminate this Agreement by written notice to the other Party if the other Party is in material breach of any of its obligations under this Agreement and such breach is not remedied within twenty Business Days after the date on which written notice specifying the breach is given to the other Party.

(c) If the Conditions are not satisfied or validly waived in accordance with this Agreement on or before the Long Stop Date, this Agreement shall terminate automatically on the Long Stop Date.

Effect of termination

(a) On termination of this Agreement, this Agreement shall cease to have effect, other than the clauses which by their own terms survive termination, being the clauses relating to confidentiality, announcements, costs, governing law and dispute resolution, which shall continue in full force and effect in accordance with their terms.

SCHEDULE 7. COMPLETION DELIVERABLES

On the Completion Date, the Sellers shall deliver, or procure the delivery of, to the Buyer's solicitors, in each case in form and substance reasonably satisfactory to the Buyer, the following documents and instruments:

(a) a stock transfer form in respect of the Shares, duly executed by or on behalf of each of the Sellers, together with the share certificate or certificates in respect of the Shares or, if any such certificate has been lost or destroyed, an indemnity in respect of such loss or destruction in such form as the Buyer may reasonably require;

(b) written resignations of each outgoing director of the Company and of the outgoing secretary of the Company, each such resignation to take effect on the Completion Date, together with a written confirmation from each such person that he or she has no claim against the Company for compensation, damages or otherwise howsoever arising in connection with the termination of his or her office or appointment or otherwise;

(c) a certified copy of the resolutions of the board of directors of the Company approving the transfer of the Shares, the registration of the Buyer or its nominee as the holder of the Shares and the doing of all things incidental thereto, together with a certified copy of the resolutions of the board of directors of any other person whose approval is required in connection with the transfer of the Shares or the registration of the Buyer or its nominee as the holder of the Shares;

(d) the release of all Encumbrances over the Shares, including, if applicable, instruments of release or discharge duly executed by each chargee or other holder of any such Encumbrance, in form and substance reasonably satisfactory to the Buyer; and

(e) the statutory registers of the Company, including the register of members, the register of directors and the register of secretaries, and the common seal of the Company, if any, for delivery to the Buyer's solicitors.

Each of the documents and instruments referred to in this Schedule shall be in full force and effect in accordance with its terms on and from the Completion Date, and the Sellers shall not, and shall procure that no person shall, take any step to revoke, terminate or rescind any such document or instrument.

The Sellers shall procure that, on the Completion Date, the Company shall:

(a) register the transfer of the Shares to the Buyer or its nominee; and

(b) issue to the Buyer or its nominee a share certificate in respect of the Shares.

The Buyer shall deliver, or procure the delivery of, the following documents and instruments to the Seller at or before Completion:

(a) a duly executed counterpart of this Agreement, to the extent that such counterpart has not already been delivered to the Seller prior to Completion;

(b) a copy of the resolutions of the board of directors of the Buyer authorising the purchase of the Shares pursuant to this Agreement and the execution, delivery and performance of this Agreement and each Transaction Document to which the Buyer is a party, certified by the company secretary of the Buyer as true, complete and in full force and effect as at Completion, together with a certificate of the company secretary of the Buyer confirming the incumbency and specimen signatures of each officer of the Buyer authorised to execute this Agreement and each Transaction Document and to take any other action in connection with the transactions contemplated by this Agreement;

(c) if the Buyer is not a natural person and applicable law or the constitutional documents of the Buyer require the approval of the shareholders of the Buyer or of any class of the shareholders of the Buyer for the purchase of the Shares and the execution, delivery and performance of this Agreement and each Transaction Document, a copy of the written resolutions of the shareholders of the Buyer or of the relevant class of shareholders, as applicable, authorising the same, certified by the company secretary of the Buyer as true, complete and in full force and effect as at Completion;

(d) a copy of the constitutional documents of the Buyer as in force as at Completion, certified by the company secretary of the Buyer as true, complete and in full force and effect as at Completion; and

(e) the other documents and instruments required to be delivered by the Buyer at Completion pursuant to the terms of this Agreement.

Post-Completion filing obligations

(a) The Buyer shall procure that, within fourteen days after Completion, each member of the Group delivers to the relevant registrar of companies all forms, notices and returns required by applicable law to be filed in connection with:

(i) the change of ownership of the Company resulting from the sale and transfer of the Shares pursuant to this Agreement;

(ii) the appointment of any new director of any member of the Group with effect at or after Completion; and

(iii) the cessation of any director of any member of the Group with effect at or immediately following Completion.

(b) If the Seller is required by applicable law to deliver any form, notice or return to any registrar of companies as a consequence of the sale and transfer of the Shares pursuant to this Agreement, the Seller shall deliver such form, notice or return to the relevant registrar of companies within fourteen days after Completion.

(c) Each party shall provide all reasonable cooperation and assistance to the other party and to each member of the Group in connection with the preparation, execution and delivery of the forms, notices and returns referred to in this Section, including by providing such information and executing such documents as may be reasonably required for that purpose, and each party shall bear its own costs in connection therewith.

(d) The Buyer shall procure that all filing fees and other charges payable to the relevant registrar of companies in connection with the forms, notices and returns referred to in this Section are paid by the relevant member of the Group when due.

Failure to comply with Completion deliverables

(a) If either party (the "Defaulting Party") fails to comply with any obligation under this Agreement to deliver a document or instrument at or before Completion, the other party (the "Non-Defaulting Party") may, by written notice to the Defaulting Party given at or before Completion, elect to take one, and only one, of the following courses of action:

(i) to proceed to Completion on the date on which Completion is scheduled to occur notwithstanding the Defaulting Party's failure, in which case the Defaulting Party's obligation to deliver the relevant document or instrument shall continue in full force and effect after Completion and the Non-Defaulting Party may pursue a claim against the Defaulting Party for any loss, damage, cost or expense suffered or incurred by the Non-Defaulting Party as a result of such failure; or

(ii) to defer Completion to a later Business Day, being a day not later than ten Business Days after the date on which Completion would otherwise have occurred, in which case the Defaulting Party shall remain obliged to deliver the relevant document or instrument on or before such later Business Day.

(b) The courses of action set out in paragraphs (i) and (ii) of paragraph (a) above are alternative and mutually exclusive. The Non-Defaulting Party may not elect both courses of action in respect of the same failure, whether at the same time or successively, and any purported election of both courses of action shall be void and of no effect.

The Seller shall procure that at or before Completion there are delivered to the Buyer the following documents relating to the Disclosure Letter and the W&I Policy.

(a) A bring-down disclosure letter addressed to the Buyer and dated as at Completion, executed by the Seller and the

Buyer, which shall disclose all matters, facts, circumstances and events arising between the date of signing and Completion which are not disclosed in the Disclosure Letter but which, if not so disclosed, would constitute a breach of any of the Warranties at Completion.

(i) The bring-down disclosure letter shall be prepared on a basis consistent with the Disclosure Letter and shall be in form and substance reasonably satisfactory to the Buyer.

(ii) The bring-down disclosure letter shall be deemed to amend and supplement the Disclosure Letter with effect from Completion only, and shall not affect the scope of the disclosures made in the Disclosure Letter for any period prior to Completion.

(b) A written confirmation from the insurer under the W&I Policy, addressed to the Buyer, or a certificate of insurance issued by or on behalf of the insurer, confirming that the W&I Policy has incepted and is in full force and effect as at Completion, and that no circumstances exist which give rise to a right on the part of the insurer to avoid, rescind or repudiate the W&I Policy or to deny liability under it in respect of any claim that may be made by the Buyer.

(i) Such confirmation or certificate shall be signed by a duly authorised officer of the insurer or by such other person as the insurer may appoint for that purpose.

(ii) Such confirmation or certificate shall confirm the aggregate limit of liability and any retention or excess under the W&I Policy, and shall state that the premium has been paid in full and that there are no outstanding premium obligations.

(c) A certificate signed by a duly authorised officer of the Company, dated as at Completion, confirming that each of the conditions to the bring-down warranty set out in this Agreement has been satisfied in all respects as at Completion and that the bring-down warranty is and will be true and accurate in all respects.

(i) The certificate shall be given by the Company and shall incorporate, by way of annexure, a copy of the bring-down disclosure letter delivered pursuant to paragraph (a) of this Schedule.

(ii) The certificate shall confirm that all consents, approvals, licences and authorisations required to be obtained in connection with the bring-down warranty have been obtained and remain in full force and effect.

(iii) The certificate shall confirm that no matter, fact, circumstance or event has occurred between the date of signing and Completion which would reasonably be expected to give rise to a claim under the W&I Policy in respect of the Warranties, other than such matters, facts, circumstances or events as are disclosed in the bring-down disclosure letter.

SCHEDULE 9. WARRANTIES

Words and expressions defined in this Agreement shall, unless the context otherwise requires, have the same meanings in this Part of this Schedule.

The Sellers jointly and severally warrant to the Buyer that, save as disclosed in the Disclosure Letter:

The Company is a private limited company duly incorporated and validly existing under the laws of England and Wales and has the requisite corporate capacity to own its assets and liabilities and to carry on its business as now carried on. (a) The Company has not been dissolved, wound up or struck off the register of companies, and no order has been made or resolution passed for its winding up. (b) No administrator, administrative receiver, receiver or

manager has been appointed over the whole or any part of the assets or undertaking of the Company, and no petition for such an appointment has been presented. (c) The Company has not taken any step to enter into administration, liquidation or any analogous solvency procedure in any jurisdiction. (d) The Company is able to pay its debts as they fall due and has not stopped or threatened to stop paying its debts.

Each Seller has full power, capacity and authority to enter into and perform this Agreement and to complete the transactions contemplated by it. (a) Where any Seller is a body corporate, that Seller is duly incorporated and validly existing under the laws of its jurisdiction of incorporation and has not been dissolved, wound up or placed in administration or liquidation. (b) Where any Seller is an individual, that Seller has full legal capacity, is not an undischarged bankrupt and no petition has been presented for that Seller's bankruptcy. (c) This Agreement constitutes the valid, binding and enforceable obligations of each Seller in accordance with its terms.

The execution and delivery by each Seller of this Agreement, the performance by each Seller of its obligations under this Agreement and the completion of the transactions contemplated by it do not and will not conflict with, or result in a breach of, or constitute a default under: (a) the memorandum and articles of association or other constitutional documents of the Company or, where any Seller is a body corporate, the constitutional documents of that Seller; (b) any order, judgment, injunction, decree, ruling, award or determination of any court, governmental body, regulatory authority or arbitral tribunal binding on the Company or any Seller; or (c) any agreement, instrument, arrangement or undertaking to which the Company or any Seller is a party or by which the Company or any Seller or any of their respective assets is bound.

All corporate authorisations and all consents, approvals, permits, waivers, notices and filings required on the part of the Company and each Seller (where a body corporate) to authorise the execution, delivery and performance of this Agreement and the transactions contemplated by it have been obtained and are in full force and effect. (a) All resolutions of the board of directors and the shareholders of the Company and of each Seller that is a body corporate required to approve this Agreement and the transactions contemplated by it have been duly and validly passed and have not been revoked or amended. (b) No further corporate action or authorisation on the part of the Company or any Seller is necessary to enable the Sellers to perform their obligations under this Agreement or to complete the transactions contemplated by it. (c) No consent, approval or authorisation of any governmental or regulatory authority is required to be obtained by the Company or any Seller in connection with the execution, delivery and performance of this Agreement other than any that has already been obtained.

The Company has no subsidiaries and does not own, legally or beneficially, any shares, stock, partnership interest, joint venture interest or other equity interest in any person, save as disclosed in the Disclosure Letter. (a) The Company is not a member of any partnership, limited liability partnership, joint venture, consortium or other unincorporated association. (b) The Company has not agreed or undertaken to acquire any shares or other equity interests in any person or to form or acquire any subsidiary. (c) No person has any right to require the Company to issue, allot or transfer any shares or other equity interests in the Company or to register any person as a member of the Company.

The Sellers warrant to the Buyer that: (a) the Sellers are together the sole legal and beneficial owners of the Shares; (b) the Shares are free from any Encumbrance and from any claim, lien, charge, option, right of pre-emption or other

third-party right; (c) the Shares are registered in the names of the Sellers, and no other person is registered as a member of the Company in respect of any of the Shares; (d) no person has entered into any agreement or arrangement with the Sellers or the Company to acquire, transfer, charge or otherwise dispose of any interest in any of the Shares; and (e) the Buyer will at Completion acquire full legal and beneficial title to the Shares, free from any Encumbrance.

The Sellers warrant to the Buyer that: (a) the Shares constitute the whole of the issued share capital of the Company; (b) no shares in the capital of the Company have been allotted or issued other than the Shares; (c) no shares in the capital of the Company are held in treasury; (d) the Shares are all of one class and rank equally in all respects; and (e) no rights attached to the Shares have been varied or waived.

The Sellers warrant to the Buyer that: (a) no option, warrant, right of pre-emption, right of first refusal, convertible instrument or other right to acquire shares in the capital of the Company is outstanding; (b) no agreement or arrangement is in force and no obligation exists under which any person is or may become entitled to require the allotment or issue of, or to subscribe for or otherwise acquire, any shares in the capital of the Company; (c) no security or instrument is outstanding which confers on any person any right to convert or exchange such security or instrument into, or to require the allotment or issue of, shares in the capital of the Company; (d) the Company has not granted any right to, and is not under any obligation to, purchase, repurchase or redeem any of its own shares; and (e) the Company is not a party to or bound by any agreement or arrangement which grants or permits the grant to any person of any option, warrant or other right to acquire any shares in its capital.

The Sellers warrant to the Buyer that: (a) the Shares have been validly allotted and issued and are fully paid or credited as fully paid; (b) no call or other payment is due or payable in respect of the Shares and no further sum is or may become payable to the Company in respect of the Shares; (c) the Shares are not subject to any forfeiture, surrender, lien, charge or other claim, and no person has any right to call for the surrender, forfeiture or return of any of the Shares; (d) the allotment and issue of the Shares has been duly authorised and completed in accordance with all applicable laws, the articles of association of the Company and all applicable resolutions and consents; and (e) the register of members of the Company is accurate and complete in all respects as at the date of this Agreement.

The Sellers warrant to the Buyer that: (a) no person has any right (whether conditional or unconditional, exercisable now or in the future) to require the Company to allot or issue any further shares in its capital; (b) no person has any right to require the Company to grant, issue or create any option, warrant, convertible instrument or other right to subscribe for or acquire any further shares in its capital; (c) the Company is not a party to or bound by any agreement, arrangement, deed, instrument or other undertaking which provides for, or could result in, the allotment or issue of any further shares in its capital; (d) no person has agreed to subscribe for, and the Company has not agreed to allot or issue, any shares in its capital; and (e) no resolution has been passed or proposed, and no order has been made, to increase, reduce, sub-divide, consolidate, redenominate or reclassify the share capital of the Company or to alter the rights attaching to any of its shares.

The statutory books and registers of the Company are up to date and accurately record its corporate history, and in particular: (a) the register of members of the Company is accurate and complete in all material respects and no person who has ceased to be a member of the Company is incorrectly shown therein; (b) the register of directors and

the register of secretaries of the Company are accurate and complete in all material respects and correctly show all appointments and cessations of directors and secretaries to the date of this Agreement; (c) the register of charges of the Company is accurate and complete in all material respects and correctly records all charges created by the Company and all charges acquired by it; (d) the register of allotments of shares in the Company is accurate and complete in all material respects; and (e) the register of debenture holders (if any) of the Company is accurate and complete in all material respects.

All returns, accounts, reports, notices and other filings which the Company is required by applicable companies legislation to deliver or make to any governmental authority or registrar have been duly and timely made or delivered, including without limitation: (a) annual returns (or confirmation statements) of the Company; (b) annual accounts of the Company, together with all documents required to be delivered with them; (c) notices of any change in the registered office of the Company; (d) notices of any change in the directors or secretary of the Company, or in their particulars; (e) notices of any allotment of shares or other change to the share capital of the Company; and (f) all other documents required to be filed with the registrar of companies in respect of the Company.

Copies of the constitutional documents of the Company provided to the Buyer are true, complete and up to date, and: (a) the copies of the memorandum of association and articles of association of the Company (or equivalent constitutional documents) provided to the Buyer are complete and accurate and reflect all resolutions and agreements of the Company required by law to be embodied in or annexed to those documents; (b) no amendment to the constitutional documents of the Company has been made or agreed which is not reflected in the copies provided to the Buyer; and (c) the constitutional documents of the Company have not been amended, supplemented or superseded by any agreement or arrangement to which the Company is a party or by which it is bound.

The Company is not in default under its own constitutional documents in any material respect, and: (a) the Company has complied in all material respects with all of its obligations under its constitutional documents; (b) there is no existing or pending default, breach or non-compliance by the Company under or in respect of its constitutional documents; and (c) no event has occurred which, with the giving of notice or lapse of time or both, would constitute a default or breach by the Company under its constitutional documents.

The Locked Box Accounts

(a) The Locked Box Accounts have been prepared in accordance with the accounting principles and policies used by the Company in preparing its financial statements for prior periods, applied on a consistent basis with those prior periods, and in accordance with all applicable legal and regulatory requirements.

(b) The Locked Box Accounts give a true and fair view of the assets, liabilities and financial position of the Company as at the Locked Box Date and of the results of operations and cash flows of the Company for the financial period ended on the Locked Box Date.

(c) The Locked Box Accounts contain no misstatement or omission which is material in the context of the Locked Box Accounts taken as a whole.

(d) The Locked Box Accounts have been drawn up on a going concern basis and no material uncertainty existed as at the Locked Box Date in relation to the Company's ability to continue as a going concern.

(e) All assets, liabilities and contingent liabilities of the Company required by the accounting principles and policies

used in preparing the Locked Box Accounts to be reflected or disclosed in those accounts have been so reflected or disclosed.

Accounting Records

(a) The Company's accounting records are up to date and have been maintained on a proper and consistent basis.

(b) The accounting records are sufficient to show and explain the Company's transactions and to disclose with reasonable accuracy the financial position of the Company at any date.

(c) The accounting records contain a complete and accurate record of all material assets, liabilities and business transactions of the Company and no material deficiency or irregularity exists in the accounting records.

(d) All material invoices, credit notes, statements, vouchers and receipts relating to the Company's business have been properly recorded in the accounting records and have been retained.

(e) The Company has complied in all material respects with all legal requirements relating to the keeping of accounting records.

No Material Adverse Change

(a) Since the Locked Box Date, there has been no material adverse change in the financial position of the Company, other than any change arising in the ordinary course of business.

(b) Since the Locked Box Date, no event has occurred and no circumstance has arisen which has had or would reasonably be expected to have a material adverse effect on the assets, liabilities or financial position of the Company, other than events or circumstances arising in the ordinary course of business.

(c) Since the Locked Box Date, the Company has carried on its business in the ordinary and usual course and has not entered into any transaction or made any distribution or payment outside the ordinary course of business which is material in the context of the Company's financial position.

No Undisclosed Liabilities

(a) No material liability of the Company, whether accrued, contingent, deferred, unquantified or otherwise, is outstanding as at the date of this Agreement other than a liability reflected or disclosed in the Locked Box Accounts or incurred in the ordinary course of business since the Locked Box Date.

(b) No material contingent liability of the Company has arisen since the Locked Box Date other than in the ordinary course of business.

(c) The Company is not subject to any guarantee, indemnity or similar commitment which is material and which is not reflected or disclosed in the Locked Box Accounts.

(d) The Company has no liability for any breach of any statutory or common law duty or obligation which is material and which is not reflected or disclosed in the Locked Box Accounts.

Accuracy of Accounts and Financial Information

(a) The financial information contained in the Locked Box Accounts is accurate in all material respects and is not misleading.

(b) The Locked Box Accounts present, in all material respects, the assets and liabilities of the Company as at the Locked Box Date and the results of the Company's operations for the period then ended.

(c) All written financial information provided by the Company to the Buyer in connection with the sale and purchase

of the Company is derived from the accounting records of the Company and, to the best of the Company's knowledge, is accurate in all material respects and is not misleading.

The list of the Company's senior employees and their material terms of engagement, which has been disclosed to the Buyer prior to the date of this Agreement, is accurate and complete in all material respects. In particular, but without limiting the generality of the foregoing: (a) the list accurately identifies each individual who is a senior employee of the Company, meaning each person whose annual base salary or fees exceed the amount that the Company has disclosed to the Buyer as its threshold for senior employee identification, and each person who holds a position of director, head of department, or other senior management role; (b) for each such senior employee, the list sets out their job title, date of commencement of continuous employment or engagement, notice period required to terminate their employment or engagement by either party, and their current annual base salary or fees; (c) the list sets out any contractual entitlement of each such senior employee to a bonus, commission, or other performance-related payment, together with the basis on which any such payment is calculated; (d) the list sets out any contractual entitlement of each such senior employee to any benefit in kind, including any company car, private medical insurance, life assurance, or permanent health insurance, and the material terms of any such benefit; (e) the list sets out any restrictive covenant, non-solicitation clause, non-dealing clause, or confidentiality obligation binding on each such senior employee, and the duration and scope of any such covenant or obligation; (f) the list sets out any contractual right of each such senior employee to enhanced redundancy payments, severance payments, or other termination payments beyond those required by law, and the basis on which any such payment would be calculated; (g) the list sets out any share option, share award, or other equity-based incentive granted to each such senior employee, and the material terms of any such grant, including any vesting conditions or exercise periods; and (h) the list sets out any contractual right of each such senior employee to any other payment or benefit not otherwise described in this Clause, which is material in the context of the Company's employment and pensions arrangements taken as a whole.

There is no material dispute, redundancy consultation, or industrial action outstanding, or, to the best of the Warrantors' knowledge and belief, threatened, in each case in respect of the Company or any of its employees or workers. For the purposes of this Clause: (a) a dispute includes any grievance, disciplinary process, employment tribunal claim, or other legal or administrative proceeding brought by an employee or worker against the Company, or any material disagreement between the Company and any trade union, works council, or other employee representative body concerning terms and conditions of employment or engagement; (b) redundancy consultation includes any consultation process required under any applicable employment legislation in respect of any proposed dismissal as redundant of twenty or more employees at any one establishment, or any other consultation with employee representatives in respect of a collective redundancy, whether or not the statutory threshold for collective consultation has been reached; (c) industrial action includes any strike, lock-out, work-to-rule, go-slow, overtime ban, or other form of concerted action by employees or workers which has the effect of disrupting, or is reasonably likely to disrupt, the Company's business or operations, and any ballot, notice, or other step taken in preparation for any such action; and (d) the Warrantors' knowledge and belief is limited to the actual knowledge of the directors of the Company and the Warrantors, after making reasonable enquiries of the persons whom they reasonably believe to

have responsibility for the Company's human resources and employee relations matters.

The Company has complied in all material respects with all applicable employment legislation, and with all legally binding codes of practice, in respect of all persons who are, or have been, employees or workers of the Company. Without limiting the generality of the foregoing, the Company has complied in all material respects with all requirements relating to: (a) written statements of employment particulars and the content and provision of such statements; (b) payment of wages, salaries, and other remuneration, including any minimum wage or living wage requirements, and the deduction of any amounts from pay, including any deductions required for income tax and social security contributions; (c) working time, including maximum working hours, rest breaks, and annual leave entitlements, and the maintenance of any required records in respect of working time; (d) discrimination, harassment, victimisation, and equality of opportunity, including any duty to make reasonable adjustments for disabled persons; (e) maternity, paternity, adoption, shared parental leave, parental bereavement leave, and any other statutory leave or pay entitlements, and the handling of any requests for flexible working; (f) termination of employment, including the giving of any required notice, the making of any required payments, and the conduct of any disciplinary or other pre-termination process; (g) health and safety at work, including the conduct of risk assessments, the provision of information and training, and the reporting of any notifiable accidents, injuries, or dangerous occurrences; (h) the engagement of workers who are not employees, including any obligation to provide a written statement or other terms of engagement, and any liability arising from their working arrangements; (i) the employment or engagement of any person who is not a national of the jurisdiction where they are employed or engaged, including any obligation to check and retain evidence of their right to work; and (j) the transfer of undertakings, or any similar legal protection for employees upon a business transfer, but only to the extent that any such transfer has occurred or any such protection has otherwise been engaged in respect of the Company's business.

The Company does not operate, sponsor, or participate in any defined benefit pension scheme, whether in the United Kingdom or in any other jurisdiction, other than any such scheme which has been fully disclosed to the Buyer prior to the date of this Agreement. For the purposes of this Clause: (a) a defined benefit pension scheme means any pension arrangement under which the benefits payable to a member are calculated by reference to the member's salary or length of service, or any other formula, and which does not depend solely on the amount of contributions paid and the investment returns on those contributions; (b) the Company has not, at any time during the period of five years prior to the date of this Agreement, been an employer in respect of any defined benefit pension scheme, whether or not the Company has ceased to participate in that scheme before the date of this Agreement; (c) no defined benefit pension scheme which the Company operates, sponsors, or participates in, or has operated, sponsored, or participated in during the period referred to in sub-clause (b), has any deficit or other shortfall which would give rise to a liability of the Company, whether under any funding obligation, any statutory employer debt, or any other obligation, other than any such deficit or shortfall which has been fully and accurately disclosed to the Buyer; and (d) the Company has not received any notice or demand, whether from any statutory pension regulator, any trustee, any actuary, or any other person, requiring the Company to make any additional contribution to, or to assume any other liability in respect of, any defined benefit pension scheme, other than any such notice or demand which has been fully disclosed to the Buyer.

No senior employee of the Company has given or received notice to terminate their employment or engagement, and, to the best of the Warrantors' knowledge and belief, no senior employee has indicated an intention to resign or retire at any time during the period of twelve months following the date of this Agreement. For the purposes of this Clause: (a) senior employee has the same meaning as set out in Clause 1(a) of this Part of this Schedule, and the list of senior employees referred to in Clause 1 of this Part of this Schedule shall be used for the purposes of identifying such employees; (b) notice to terminate employment or engagement includes any notice given by the Company to a senior employee, any notice given by a senior employee to the Company, and any agreement between the Company and a senior employee under which either party has agreed to waive or vary any notice period or otherwise to bring the employment or engagement to an end on a date earlier than the date on which it would otherwise have ended; (c) the Warrantors' knowledge and belief is limited to the actual knowledge of the directors of the Company and the Warrantors, after making reasonable enquiries of the persons whom they reasonably believe to have responsibility for the Company's human resources and employee relations matters, and shall not be construed as requiring the Warrantors to have made any specific enquiry of any senior employee or any other person; and (d) for the avoidance of doubt, nothing in this Clause shall be read as warranting that any senior employee will not resign or retire during the period referred to in this Clause, but only that no such senior employee has given or received notice to terminate, and that no indication of an intention to resign or retire is known to the Warrantors as at the date of this Agreement. Full details of all real property owned, leased or occupied by the Company have been disclosed to the Buyer and the Disclosed Information contains full, accurate and complete particulars of: (a) all real property owned by the Company, including the title number, tenure, address, description, area and current use of each such property; (b) all real property leased or occupied by the Company, including the address, description, area and current use of each such property and the term, rent, service charge, review provisions, break rights and other principal terms of each lease, tenancy, licence or other occupational arrangement; (c) all leases, tenancies, sub-leases, underleases, licences, consents, wayleaves, easements, covenants, restrictions and other rights granted by the Company or to which the Company is a party in respect of any real property owned, leased or occupied by the Company; and (d) all negotiations, agreements or arrangements, whether conditional or unconditional and whether legally binding or not, under which the Company has any right or obligation to acquire, dispose of, occupy or otherwise use any real property.

The Company has good and marketable title to, or a valid and subsisting leasehold interest in, all real property owned, leased or occupied by the Company, free from all Encumbrances and from all options, rights of pre-emption and other adverse rights, claims and interests of any person and, in particular: (a) the title of the Company to, or its leasehold interest in, such real property is not subject to any defect, irregularity, restriction, covenant, condition, easement, wayleave or other matter which would reasonably be expected to have a material adverse effect on the value, use, enjoyment, alienability or marketability of all or any part of such real property; (b) all documents necessary to establish, prove and perfect the title of the Company to, or its leasehold interest in, such real property have been duly executed, stamped and delivered to or for the benefit of the Company and are in the possession or control of the Company; (c) none of such real property is subject to any claim to adverse possession, any possessory title, any squatter's right or any overriding interest which has not been registered or otherwise disclosed in the

Disclosed Information; (d) no steps have been taken and no notices have been served by or on the Company, and none have been threatened, for the compulsory acquisition, expropriation or vesting of all or any part of such real property; and (e) all buildings, structures and other improvements on such real property are situated wholly within the boundaries of the registered title to such real property and do not encroach on any adjoining or neighbouring property.

There is no material breach or default by the Company or, to the best of the Sellers' knowledge, information and belief, by any landlord, tenant or other party under any lease, tenancy, licence or other occupational arrangement relating to real property owned, leased or occupied by the Company and, in particular: (a) all rents, service charges, insurance premiums, taxes and other outgoings payable by the Company in respect of such real property have been paid in full in accordance with the terms of the relevant arrangements; (b) all covenants, conditions and other obligations on the part of the Company under each such arrangement have been duly performed and observed; (c) no notice of breach, default, forfeiture, re-entry, termination, disrepair or intention to determine any such arrangement has been served on or by the Company and, to the best of the Sellers' knowledge, information and belief, no such notice has been threatened; (d) no event has occurred and no circumstance exists which, with the lapse of time, the giving of notice or the making of any election, would constitute a material breach or default under any such arrangement or would entitle any landlord, tenant or other party to forfeit, terminate, re-enter or recover possession of the whole or any part of such real property; and (e) to the best of the Sellers' knowledge, information and belief, no landlord or other party to any such arrangement is in material breach or default under that arrangement and no event has occurred and no circumstance exists which would reasonably be expected to give rise to any such breach or default.

No real property owned, leased or occupied by the Company is subject to any option, right of pre-emption, right of first refusal, right of first offer or any other similar right, and no such real property is subject to any Encumbrance, in each case other than as disclosed in the Disclosed Information and, in particular: (a) no person has any right or entitlement, whether conditional or unconditional, to call for or require the Company to sell, transfer, assign, surrender, charge or otherwise dispose of all or any part of such real property; (b) no person has any right or entitlement to call for or require the grant to any person of any option, right of pre-emption, right of first refusal, right of first offer or any other similar right over all or any part of such real property; (c) the Company has not granted and, to the best of the Sellers' knowledge, information and belief, no person has acquired any charge, mortgage, lien, pledge, hypothecation or other form of security over all or any part of such real property; and (d) none of such real property is held by the Company as nominee, trustee, agent or otherwise on behalf of any person, and no person holds any of such real property as nominee, trustee, agent or otherwise on behalf of the Company.

The Company owns, or has a valid and enforceable licence to use, all Intellectual Property Rights material to the business carried on by the Company on the Locked Box Accounts Date and as currently carried on. (a) The Company is the sole and absolute legal and beneficial owner of each item of registered Intellectual Property Rights owned by the Company, free from all Encumbrances, and the Company has not agreed to create, and is not otherwise subject to, any Encumbrance over any such registered Intellectual Property Rights. (b) Each item of registered Intellectual Property Rights owned by the Company is valid, subsisting and in full force and effect, and

has not lapsed, been abandoned or been revoked, and all renewal and registration fees and other required filings have been paid or made on a timely basis. (c) No opposition, cancellation, revocation, rectification or invalidation proceedings are pending or, to the best of the knowledge of the Company (having made due enquiry), threatened in respect of any item of registered Intellectual Property Rights owned by the Company. (d) The Company is not bound by any agreement which restricts or limits the right of the Company to use, exploit or enforce any Intellectual Property Right owned by the Company and material to the business.

No material Intellectual Property Right owned by the Company is being infringed by any third party, and the business of the Company does not infringe any Intellectual Property Right of any third party. (a) To the best of the knowledge of the Company (having made due enquiry), no person is infringing or otherwise adversely possessing any material Intellectual Property Right owned by the Company. (b) No claims, actions, proceedings or disputes are pending or, to the best of the knowledge of the Company (having made due enquiry), threatened against the Company alleging that the Company has infringed, or is infringing, any Intellectual Property Right of any third party. (c) The Company has not received any written notice of any claim or allegation that the business of the Company infringes, or may infringe, any Intellectual Property Right of any third party. (d) The Company has not authorised or permitted any third party to do any act which would constitute an infringement of any material Intellectual Property Right owned by the Company.

The information technology systems used in the business of the Company (including all computer hardware, software, networks, data storage and communications systems) (the IT Systems) are adequate for the business of the Company as currently carried on and have not suffered any material failure in the period of twelve months ending on the Locked Box Accounts Date. (a) The IT Systems are in good working order and have been maintained in all material respects in accordance with the standards of a prudent operator of a business comparable to the business of the Company. (b) The Company has implemented and maintained appropriate technical and organisational measures to protect the IT Systems from unauthorised access, loss, damage, disruption or failure. (c) No material security breach of the IT Systems has occurred in the period of twelve months ending on the Locked Box Accounts Date. (d) To the best of the knowledge of the Company (having made due enquiry), the IT Systems are free from any computer virus, malware or other corrupting or disrupting code that is material to the operation of the business. (e) The Company maintains back-up copies of all material data stored on the IT Systems and conducts regular tests of the restoration of such back-up copies, in each case in accordance with the standards of a prudent operator of a business comparable to the business of the Company.

The Company has complied in all material respects with all Data Protection Legislation applicable to the business of the Company. (a) The Company has in place appropriate technical and organisational measures to ensure a level of security appropriate to the risk presented by its processing of personal data. (b) No claim, action, proceeding or investigation is pending or, to the best of the knowledge of the Company (having made due enquiry), threatened against the Company, and the Company has not received any written notice, alleging any breach of any Data Protection Legislation by the Company. (c) No personal data breach (as defined in the Data Protection Legislation) has occurred in respect of any personal data processed by or on behalf of the Company in the period of twelve months ending on the Locked Box Accounts Date. (d) The Company has a valid and lawful basis for each instance

of processing of personal data carried on by or on behalf of the Company and, where required, has obtained the informed and unambiguous consent of the relevant data subjects for such processing. (e) The Company has entered into written data processing agreements with each person who processes personal data on behalf of the Company, in each case in such form as is required by, and containing the terms required by, the Data Protection Legislation.

To the best of the knowledge of the Company (having made due enquiry), the Company has complied in all material respects with the terms and conditions of all licences in respect of third-party software (including open source software) used in the business of the Company, and no use of such third-party software obliges the Company to disclose or make available any source code of any software owned by the Company. (a) No claim has been made, or threatened, that the use by the Company of any third-party software infringes any right of any third party or breaches any licence terms. (b) The Company does not use any open source software in a manner that would require, or purport to require, the Company to license, disclose or make available any source code of any software owned by the Company under the terms of any open source licence.

Terms defined in this Agreement have the same meaning in this Schedule.

In this Schedule, the following definitions apply. "Environmental Law" means all applicable laws, statutes, regulations, directives, codes, judgements, orders, decisions and other legally binding requirements of any governmental authority, and all common law duties, in each case relating to the protection of human health or the environment or the emission, discharge, release or threatened release of any Contamination, and including all requirements relating to the storage, handling, treatment, transport, recycling or disposal of waste or hazardous substances and to the manufacture, importation, use or sale of chemicals or hazardous substances. "Environmental Permit" means any permit, licence, consent, approval, authorisation, registration, exemption or other permission required under any Environmental Law for the conduct of the Business. "Environmental Claim" means any claim, action, suit, proceeding, investigation, reference to arbitration or other dispute resolution process, or any formal notice of liability, in each case arising under or in connection with any Environmental Law, Environmental Permit or Contamination. "Contamination" means the presence, emission, discharge, release or escape of any substance, waste, radiation, heat, noise, odour or other matter capable of causing harm to human health or the environment, in or under land, water or air. "Hazardous Substance" means any substance, material or waste which is regulated under any Environmental Law by reason of its hazardous, dangerous or toxic properties, or which is otherwise reasonably likely to cause material harm to human health or the environment. "Remediation" means any investigation, monitoring, assessment, removal, treatment, containment, clean-up or other action taken or required under Environmental Law to prevent, minimise, remedy or otherwise address the presence of any Contamination.

The Company has obtained and continues to hold all Environmental Permits which are material to the conduct of the Business as carried on at the date of this Agreement, and all such Environmental Permits are in full force and effect. The Company has complied, and to the Sellers' knowledge each of its Subsidiaries has complied, in all material respects with all Environmental Permits and with all Environmental Laws applicable to the Business.

(a) No material breach of any Environmental Permit or Environmental Law has been committed or is alleged to have been committed by the Company or, to the Sellers' knowledge, by any of its Subsidiaries or by any agent, contractor or other person for whose acts or omissions the Company or any of its Subsidiaries is responsible.

(b) To the Sellers' knowledge, no fact or circumstance exists which is reasonably likely to result in the suspension, revocation, non-renewal or material modification of any Environmental Permit which is material to the Business.
(c) The Company has made all notifications, submissions, returns and filings required to be made under any Environmental Law or Environmental Permit in respect of the Business, and has paid all fees, charges and other amounts required to maintain each such Environmental Permit in full force and effect.
The Company has not received any written or oral notice, communication or complaint from any governmental authority or any other person alleging that the Company or any of its Subsidiaries is or may be in material breach of any Environmental Law or Environmental Permit, and to the Sellers' knowledge no such notice, communication or complaint has been threatened or is anticipated.
(a) To the Sellers' knowledge, no investigation, review, audit or inspection is being conducted by any governmental authority in relation to the compliance by the Company or any of its Subsidiaries with any Environmental Law or Environmental Permit.
(b) No material remedial, clean-up or compliance obligation has been imposed on the Company or any of its Subsidiaries under any Environmental Law or Environmental Permit, and no such obligation has been assumed by the Company or any of its Subsidiaries by way of contract, deed, undertaking or otherwise.
There is no pending or, to the Sellers' knowledge, threatened Environmental Claim against the Company or any of its Subsidiaries, and to the Sellers' knowledge there are no facts or circumstances which are reasonably likely to give rise to an Environmental Claim against the Company or any of its Subsidiaries.
(a) For the purposes of this paragraph, an Environmental Claim is threatened if a governmental authority or other person has asserted or indicated an intention to assert such a claim, or if there are facts or circumstances which would ordinarily be expected to give rise to such a claim.
(b) Neither the Company nor, to the Sellers' knowledge, any of its Subsidiaries has received any direction, request or order to provide information or documents in connection with any actual or potential Environmental Claim, other than routine requests made in the ordinary course of business.
No property currently or formerly owned, leased or occupied by the Company or any of its Subsidiaries is, or to the Sellers' knowledge has been, subject to any material Contamination which is required to be remediated under Environmental Law, and no such property has been used for the storage, treatment, disposal or release of any Hazardous Substance in a manner which has caused or would reasonably be expected to cause material Contamination or material liability under Environmental Law.
(a) To the Sellers' knowledge, there has been no release, discharge, emission or escape of any Contamination on, under, from or into any property currently or formerly owned, leased or occupied by the Company or any of its Subsidiaries which has given rise, or would reasonably be expected to give rise, to a requirement for Remediation under Environmental Law.
(b) Neither the Company nor, to the Sellers' knowledge, any of its Subsidiaries has received any notice from any governmental authority requiring the undertaking of Remediation in respect of any property currently or formerly owned, leased or occupied by the Company or any of its Subsidiaries, and to the Sellers' knowledge no such notice is contemplated.

(c) To the Sellers' knowledge, no property currently or formerly owned, leased or occupied by the Company or any of its Subsidiaries is listed on, or has been proposed for listing on, any register of contaminated land or similar register maintained under any Environmental Law.

Litigation, arbitration and regulatory proceedings

(a) The Company is not engaged, whether as claimant, defendant, respondent or other party, in any litigation, arbitration, adjudication or other alternative dispute resolution process, or any regulatory, administrative, disciplinary or other governmental proceeding or investigation, which is material to the business, assets, financial condition or results of operations of the Company, other than as Disclosed.

(b) So far as the Company is aware, no such litigation, arbitration, adjudication or other alternative dispute resolution process, nor any such regulatory, administrative, disciplinary or other governmental proceeding or investigation, is pending or threatened against or by the Company, other than as Disclosed.

(c) The Company is not subject to any outstanding judgment, order, decision, injunction, award or sanction of any court, arbitral tribunal, governmental authority or other competent body which is material to the business, assets, financial condition or results of operations of the Company, other than as Disclosed.

Insurance

(a) The Company maintains and holds in full force and effect insurance policies which are consistent with the size, nature and scope of the business carried on by the Company and the industry in which the Company operates, including, where applicable, public liability, employers' liability, product liability, property damage, business interruption, directors' and officers' liability and professional indemnity insurance, in each case with reputable insurers and on terms which are customary for companies carrying on the same or substantially similar businesses.

(b) All premiums and other amounts payable in respect of such insurance policies have been paid when due, and no such insurance policy has lapsed, been cancelled or been avoided.

(c) So far as the Company is aware, no material claim is outstanding under any such insurance policy, and no matter has arisen which would entitle any insurer to avoid, void, rescind, cancel, repudiate or decline to renew any such insurance policy, or to refuse or reduce payment under any such policy.

Compliance with applicable law

(a) The Company has conducted and continues to conduct its business in material compliance with all applicable laws, statutes, regulations, codes, ordinances, rules and other requirements of any governmental authority having jurisdiction over the Company, its business, assets, properties or employees.

(b) No governmental authority has notified the Company in writing of any material breach of any applicable law by the Company and, so far as the Company is aware, no investigation, inquiry or enforcement proceeding in respect of any alleged material breach of any applicable law is pending or threatened against the Company.

(c) Neither the Company nor, so far as the Company is aware, any director, officer, employee, agent, representative or other person acting on the Company's behalf has, directly or indirectly, offered, promised, paid, given or authorised the offering, payment or giving of any money, property, gift or other advantage, in each case in violation of any applicable anti-bribery or anti-corruption law, to any government official, political party, political party official, candidate for public office or any other person, for the purpose of influencing any act or decision, securing

any improper advantage or otherwise in connection with the business of the Company.

(d) The Company is not, and so far as the Company is aware no director, officer, employee, agent, representative or other person acting on the Company's behalf is, a person designated or listed under any applicable economic or financial sanctions law or regulation, and the Company has not, and so far as the Company is aware no such person has, entered into any transaction or dealing which is prohibited by any applicable economic or financial sanctions law or regulation.

Licences and permits

(a) The Company holds all licences, permits, consents, approvals, authorisations, registrations and exemptions of any governmental authority or other relevant third party which are material to the conduct of the business of the Company as currently carried on.

(b) Each such licence and permit is valid and in full force and effect, and the Company is in material compliance with the terms and conditions of each such licence and permit.

(c) So far as the Company is aware, no event has occurred and no circumstance exists which would entitle any governmental authority to revoke, suspend, terminate, withdraw, vary, amend, fail to renew or impose any material new condition or restriction on any such licence or permit.

No revocation of licences or permits

(a) No governmental authority has notified the Company, whether in writing or orally, of any intention to revoke, suspend, terminate, withdraw, vary, amend or fail to renew any licence or permit which is material to the conduct of the business of the Company.

(b) So far as the Company is aware, no governmental authority has threatened or otherwise indicated an intention to revoke, suspend, terminate, withdraw, vary, amend or fail to renew any such licence or permit, and no such revocation, suspension, termination, withdrawal, variation, amendment or failure to renew is pending or under active consideration by any governmental authority.

(c) To the extent that any such licence or permit is renewable, the Company has made all necessary applications for renewal in a timely manner and, so far as the Company is aware, no grounds exist for any such renewal application to be refused.

The Warrantors jointly and severally warrant to the Buyer, save as set out in the Disclosure Letter, as follows.

For the purposes of this Part of this Schedule, "Material Contract" means any contract, agreement, arrangement, commitment, understanding or other instrument to which the Company is a party or by which the Company or any of its assets is bound and which is material to the business, assets, financial condition, results of operations or prospects of the Company.

Disclosure and accuracy of Material Contracts

(a) The list of Material Contracts set out in the Disclosure Letter is accurate and complete in all material respects.

(b) No Material Contract has been amended, supplemented, varied, replaced, assigned, sub-contracted or terminated, in whole or in part, except as set out in the Disclosure Letter or as apparent from the copy of the relevant Material Contract made available to the Buyer.

(c) Each copy of a Material Contract made available to the Buyer is a true, complete and accurate copy of the

relevant Material Contract as in force at the date of this Agreement and includes all amendments, side letters, schedules, annexures, consents, waivers and variations to or in respect of that Material Contract.

(d) Each Material Contract is in full force and effect and constitutes a valid, binding and enforceable obligation of the Company and, to the Sellers' Knowledge, of each other party to it.

No default under Material Contracts

(a) The Company is not in material default under or in respect of any Material Contract.

(b) No event or circumstance has occurred which, with the giving of notice, lapse of time, determination of any threshold or otherwise, would constitute a material default by the Company under or in respect of any Material Contract.

(c) To the Sellers' Knowledge, no other party to any Material Contract is in material default under or in respect of that Material Contract.

(d) To the Sellers' Knowledge, no event or circumstance has occurred which, with the giving of notice, lapse of time or otherwise, would constitute a material default by any other party to any Material Contract.

(e) The Company has not received written notice of, and to the Sellers' Knowledge there is not pending, any claim or demand by any other party to a Material Contract alleging any breach, default, repudiation, termination or cancellation in respect of that Material Contract.

Effect of the transactions on Material Contracts

(a) The execution, delivery and performance of this Agreement and the consummation of the transactions contemplated by this Agreement will not cause the termination, suspension, cancellation or rescission of, or confer on any party a right to terminate, suspend, cancel or rescind, any Material Contract.

(b) The transactions contemplated by this Agreement will not accelerate, modify, enhance or otherwise change any rights, benefits, entitlements, options, interests, obligations or liabilities of any party under any Material Contract.

(c) The transactions contemplated by this Agreement will not cause any payment, prepayment, repayment, redemption, purchase, funding or other obligation to become due or capable of becoming due, or any commission, fee, penalty or other amount to become payable, by the Company or, to the Sellers' Knowledge, by any other party to any Material Contract.

(d) The transactions contemplated by this Agreement will not confer on any other party to any Material Contract any right to require the renegotiation, repricing or amendment of any Material Contract.

(e) No consent, approval, waiver, authorisation or novation is required from any person under or in respect of any Material Contract in connection with the transactions contemplated by this Agreement.

Related-party transactions

(a) There is no outstanding transaction, contract, agreement, arrangement, commitment, understanding or obligation, whether oral or written, between the Company and any Seller or any Affiliate of any Seller, other than as set out in the Disclosure Letter.

(b) There is no outstanding loan, advance, credit facility, guarantee, indemnity, security interest, charge, mortgage, pledge, lien or other financial accommodation or arrangement between the Company and any Seller or any Affiliate of any Seller, other than as set out in the Disclosure Letter.

(c) There is no amount outstanding or owing to or from the Company in respect of any transaction, contract, agreement, arrangement, commitment, understanding or obligation described in paragraph (a) or paragraph (b), other than as set out in the Disclosure Letter.

(d) No Seller or any Affiliate of any Seller provides, or has provided, any management, administrative, accounting, treasury, tax, legal, information technology, secretarial or other services to the Company, other than as set out in the Disclosure Letter.

(e) No Seller or any Affiliate of any Seller has any direct or indirect interest in any person, other than the Company, which is a party to a contract or arrangement with the Company, other than as set out in the Disclosure Letter.

(f) There is no contract or arrangement to which the Company is a party and which creates any rights for, or confers any benefit on, any Seller or any Affiliate of any Seller other than the right to receive consideration for the sale of the Shares under this Agreement and any rights expressly set out in the Disclosure Letter.

Freedom to carry on business

(a) The Company is not a party to or bound by any contract, agreement, arrangement, commitment or undertaking which restricts in any material respect the freedom of the Company to carry on its business or any part of its business in any geographic area, or in any sector, market, customer, supplier, distributor or product category.

(b) The Company is not a party to or bound by any non-competition, exclusivity, non-solicitation, most-favoured-customer, most-favoured-nation, non-poaching, minimum purchase, minimum supply, or first refusal or first offer obligation which is material to the Company.

(c) No Material Contract contains any provision which would restrict the Company from developing, manufacturing, marketing, selling, distributing or supplying any product or service, or from entering into any line of business, in each case in any material respect.

(d) The Company has not agreed or undertaken with any person to act in any way that is inconsistent with the full and free carrying on of the business of the Company as carried on at the date of this Agreement.

(e) To the Sellers' Knowledge, no other party to any Material Contract is subject to any obligation to the Company that restricts that party's freedom to carry on a business that competes or could compete with the business of the Company.

Neither the Company nor, to the Sellers' knowledge, any director, officer, employee or agent of the Company has, in connection with the business of the Company, offered, promised, given or received a bribe or other improper payment, including:

(a) any payment, gift, favour or other advantage to or from a government official, political party, party official, candidate for public office, or any officer or employee of any governmental body, public international organisation or state-owned enterprise, in each case for the purpose of influencing any act, decision or omission of such person, or inducing such person to use their influence to affect any act, decision or omission of any governmental body, public international organisation or state-owned enterprise, so as to secure an improper advantage for the Company; or

(b) any payment, gift, favour or other advantage to or from any other person, in each case for the purpose of inducing or rewarding a breach of any duty owed to any person, or otherwise securing an improper advantage in the

conduct of the Company's business.

The Company has maintained adequate internal controls and procedures reasonably designed to prevent bribery and corruption, and, to the extent applicable, has required its agents, distributors and other intermediaries to maintain similar controls and procedures, in each case including:

(a) written anti-bribery and anti-corruption policies and procedures communicated to all of the Company's directors, officers, employees and, where relevant, its agents, distributors and other intermediaries;

(b) a programme of regular training on anti-bribery and anti-corruption compliance for the Company's directors, officers and employees, and for those agents, distributors and other intermediaries performing services for or on behalf of the Company in a jurisdiction in which bribery or corruption is a known business risk;

(c) a system of internal bookkeeping, recording and reporting designed to ensure that all transactions and payments made by or on behalf of the Company are accurately and completely reflected in its books and records in sufficient detail to identify any improper payment;

(d) procedures for the conduct of due diligence, and the periodic review, of agents, distributors and other intermediaries engaged by or on behalf of the Company; and

(e) procedures for the reporting, investigation and remediation of any suspected instance of bribery or corruption by or in relation to the Company, including a mechanism for confidential internal reporting.

Neither the Company nor, to the Sellers' knowledge, any director, officer or employee of the Company:

(a) is a person that is the target of applicable trade or economic sanctions, including any person designated or listed under, or otherwise subject to, any applicable sanctions law or regulation, or any person owned or controlled by, or acting on behalf of, such a person;

(b) has conducted any business, entered into any transaction or provided any funds, goods or services to, or for the benefit of, a person described in paragraph (a) above; or

(c) has otherwise engaged in any conduct that would constitute a violation of any applicable trade or economic sanctions.

The Company has complied, in all material respects, with all applicable export control laws and regulations, including in respect of the export, re-export, transfer and deemed export of goods, software and technology, and in particular has:

(a) obtained and maintained all licences, authorisations, registrations and approvals required for the conduct of the Company's business under applicable export control laws and regulations;

(b) correctly classified and screened all goods, software and technology exported, re-exported, transferred or deemed exported by or on behalf of the Company, and all recipients and end-users thereof, against applicable export control lists and restricted party lists;

(c) complied with all conditions, restrictions and requirements imposed by or under any such licence, authorisation, registration or approval; and

(d) kept and maintained all records required to be kept and maintained under applicable export control laws and regulations.

No governmental or regulatory authority has investigated or notified the Company of an intended investigation into

a possible violation by the Company of any anti-corruption, sanctions or export control law, and, to the Sellers' knowledge:

(a) no such investigation or enforcement action is pending or threatened;

(b) no governmental or regulatory authority has commenced, or indicated an intention to commence, any civil or criminal proceedings against the Company in respect of any such possible violation; and

(c) the Company has not received any written notice from any governmental or regulatory authority alleging any such possible violation or requiring the Company to take or refrain from taking any action in connection therewith.

Neither the Company nor, to the Sellers' knowledge, any director, officer or employee of the Company has, in the six years prior to the date of this Agreement, been:

(a) convicted of, or entered into any plea agreement, deferred prosecution agreement or non-prosecution agreement in respect of, any offence under any anti-corruption, sanctions or export control law; or

(b) debarred, suspended or otherwise declared ineligible to participate in any procurement or contracting process by any governmental or regulatory authority on grounds related to anti-corruption, sanctions or export control.

The Company warrants to the Buyer as follows:

Ability to pay debts

(a) The Company is not unable to pay its debts as they fall due and has not stopped paying its debts in the ordinary course of business.

(b) No unsatisfied judgment, order or award is outstanding against the Company, and no creditor has served on the Company any statutory demand or other formal demand for payment which remains unpaid.

(c) The Company has not suspended payment of any of its debts, and no facts or circumstances exist which would cause the Company to be regarded for the purposes of any applicable law as unable to pay its debts.

No winding-up, administration, dissolution or reorganisation

(a) No step has been taken, and no step is pending or threatened, for the winding-up, administration, dissolution or reorganisation of the Company.

(b) No petition for the winding-up of the Company has been presented, and no application for the administration or dissolution of the Company has been made.

(c) No order has been made by any court or other authority for the winding-up, administration or dissolution of the Company.

(d) No resolution has been passed for the winding-up or dissolution of the Company, and no meeting has been convened for the purpose of considering any such resolution.

(e) The Company has not taken any decision, and no notice has been given, and no other step has been taken, with a view to the appointment of an administrator or any similar officer.

Receivers and similar officers

(a) No receiver, administrative receiver, administrator, provisional liquidator or similar officer has been appointed over any part of the Company's assets or undertaking.

(b) No application for the appointment of any receiver, administrative receiver, administrator, provisional liquidator or similar officer over any part of the Company's assets or undertaking is pending or threatened.

(c) No person has taken possession of, or exercised any power of sale, distress, execution, attachment or other legal process over, any part of the Company's assets or undertaking.

(d) No notice of intention to appoint an administrator or any similar officer has been given, and no document has been filed with any court or other authority in connection with any such appointment.

Compositions and arrangements with creditors

(a) The Company has not entered into any composition or arrangement with its creditors generally or with any class of its creditors.

(b) No proposal for any voluntary arrangement or compromise with the Company's creditors generally or with any class of its creditors has been made, approved or taken effect.

(c) No scheme of arrangement between the Company and its creditors generally or with any class of its creditors has been proposed, sanctioned or implemented.

(d) No moratorium has been obtained in respect of the Company, and no application for any such moratorium is pending or threatened.

(e) No trust deed, assignment or other arrangement for the benefit of the Company's creditors generally or with any class of its creditors has been executed or made.

For the purposes of this Schedule, "Health and Safety Law" means all applicable legislation, statutes, statutory instruments, regulations, orders, approved codes of practice and binding guidance, together with all applicable common law duties, in each case relating to the health, safety and welfare of persons at work or affected by the Company's business and as in force from time to time.

The Company warrants to the Buyer that: (a) during the period of six years immediately preceding the date of this Agreement, the Company has complied in all material respects with Health and Safety Law; (b) the Company has maintained in all material respects systems, policies, procedures, risk assessments and records appropriate and sufficient to secure compliance with Health and Safety Law; (c) all training, instruction, supervision and information required by Health and Safety Law has been provided to the Company's officers, employees, contractors and agents during that period; and (d) the Company has not committed any act or omission during that period that constitutes a criminal offence under Health and Safety Law.

The Company warrants to the Buyer that: (a) no notice, communication or allegation, whether written or oral, has been received by the Company from any competent authority, insurer, employee, trade union, works council, contractor or other person alleging a material breach of Health and Safety Law in connection with the Company's business; (b) no improvement notice, prohibition notice, contravention notice, penalty notice, or any similar notice or order, has been served on the Company and remains outstanding in connection with a material breach of Health and Safety Law; (c) no investigation, inquiry, audit, inspection or enforcement action by any competent authority relating to Health and Safety Law is in progress or, to the knowledge of the Company, is threatened in writing; and (d) no prosecution or other criminal or administrative proceeding relating to Health and Safety Law has been commenced, or is pending or threatened, against the Company.

The Company warrants to the Buyer that: (a) during the period of three years immediately preceding the Locked Box Accounts Date, no fatality has occurred at, or otherwise in connection with, any premises, site, workplace or

business of the Company; (b) during that period, no person has suffered a reportable serious injury, reportable occupational disease or reportable dangerous occurrence at, or otherwise in connection with, any premises, site, workplace or business of the Company, of a type required to be notified or reported under Health and Safety Law; and (c) there is no claim, action, suit, arbitration or other proceeding pending or, to the knowledge of the Company, threatened in respect of any personal injury, occupational disease or death arising out of the Company's business during that period.

The Company warrants to the Buyer that: (a) the Company holds all permits, permissions, authorisations, licences, consents, exemptions, registrations, confirmations and certificates required under Health and Safety Law in respect of the Company's business as currently conducted, and which are material to the Company's business; (b) each such permit and certificate is in full force and effect and the Company has complied in all material respects with all conditions and limitations attaching to it; (c) no application by the Company for any such permit or certificate has been refused, or is awaiting determination, and no circumstances exist that are reasonably likely to lead to the suspension, revocation, withdrawal, modification or non-renewal of any such permit or certificate; and (d) the Company has made all notifications and filings and kept all registers required under Health and Safety Law in connection with the Company's business.

The Sellers warrant to the Buyer as follows:

The information contained in the Disclosure Letter and the data room made available to the Buyer's advisers is true, accurate and not misleading in any material respect. The Sellers warrant that:

(a) the Disclosure Letter contains a full and accurate disclosure of all matters which are relevant to the warranties set out in this Schedule and fairly sets out all information which is required to be disclosed pursuant to this Agreement;

(b) the Disclosure Letter is sufficiently detailed and specific to enable the Buyer to identify the nature and extent of each matter disclosed therein and does not contain any general or blanket disclosure which purports to limit or qualify any warranty in this Schedule other than to the extent that such disclosure is specific to the matter concerned;

(c) the data room contains true, complete and accurate copies, in all material respects, of all documents and records which are referred to in the Disclosure Letter or which a prospective buyer of the Company would reasonably expect to be contained in the data room for the purposes of a transaction of the nature of that contemplated by this Agreement; and

(d) the information contained in the data room is presented in a manner which is fair, accurate and not misleading in any material respect, and nothing has been omitted from the Disclosure Letter or the data room which, had it been included, would reasonably be regarded by a prospective buyer of the Company as material in the context of its decision to enter into this Agreement.

The Sellers are not aware of any fact or matter which, if disclosed to the Buyer, would be reasonably likely to affect a prospective buyer's decision to enter into this Agreement, other than as fairly disclosed. For the purposes of this Clause:

(a) the Sellers shall be deemed to be aware of a fact or matter if such fact or matter is known to any Seller, or to any director or senior employee of the Company, or, in the case of a corporate Seller, to any director or senior employee of that corporate Seller;

(b) aware means actual knowledge after due and careful enquiry, and the Sellers have made due and careful enquiry of the persons referred to in paragraph (a) above in connection with the preparation of the Disclosure Letter and the making available of the data room;

(c) fairly disclosed means disclosed in the Disclosure Letter or the data room in a manner which is clear, specific and sufficiently prominent to enable a reasonable prospective buyer of the Company to identify the matter in question and assess its significance; and

(d) the Sellers have not, since the date on which the Disclosure Letter was last provided to the Buyer and the data room was last made available to the Buyer's advisers, become aware of any fact or matter which would render the information contained in the Disclosure Letter or the data room untrue, inaccurate or misleading in any material respect.

The data room index accurately lists every document made available to the Buyer's advisers. The Sellers warrant that:

(a) the data room index made available to the Buyer's advisers comprises a complete and accurate list of every document and record contained in the data room as at the date of this Agreement;

(b) each document and record listed in the data room index is, and has at all times since the date of this Agreement been, located in the data room in the form and in the electronic location described in the data room index;

(c) the data room index accurately describes, in all material respects, the contents and nature of each document and record listed therein and does not omit any document or record which would reasonably be expected to be included in a data room index for a transaction of the nature of that contemplated by this Agreement; and

(d) the data room index was provided to the Buyer's advisers in its final form prior to the date of this Agreement and, except as otherwise agreed in writing by the Buyer, no additions, deletions or other changes have been made to the data room or to the data room index since the date on which the data room index was last provided to the Buyer's advisers.

No document in the data room has been withdrawn or replaced without notice to the Buyer. The Sellers warrant that:

(a) every document and record which has at any time been made available to the Buyer's advisers in the data room has remained available in the data room, in the same form and content, up to the date of this Agreement, other than any document or record which has been withdrawn or replaced in accordance with paragraph (b) below;

(b) where any document or record in the data room has been withdrawn or replaced, the Buyer was notified in writing of such withdrawal or replacement prior to the date of this Agreement, and any such notice identified the document or record concerned and, in the case of a replacement, the location in the data room of the replacement document or record;

(c) where any document or record in the data room has been replaced, the version of that document or record which is available in the data room at the date of this Agreement is the most recent version and any superseded version has been removed from the data room or clearly marked as superseded; and

(d) no document or record has been removed from the data room since the date on which the data room was first made available to the Buyer's advisers other than with the prior written consent of the Buyer or in accordance with the provisions of this Agreement.

The Sellers warrant to the Buyer that, save as Disclosed:

No product or service supplied by the Company is subject to a recall, withdrawal or safety notice.

(a) No product or service manufactured, supplied, sold, imported, exported or provided by or on behalf of the Company has been, or is, the subject of any recall, withdrawal, suspension, quarantine, corrective action, safety alert or safety notice, whether voluntary or mandatory.

(b) No court, government, governmental body, regulatory authority or other competent authority has, within the six years prior to the date of this Agreement, ordered, initiated, threatened or requested any recall, withdrawal, suspension, quarantine, corrective action, safety alert or safety notice in respect of any product or service supplied by the Company, or required the Company to give any notice to any customer, consumer or user of any product or service supplied by the Company concerning any actual or suspected defect, failure, hazard, contamination or non-compliance.

(c) To the Sellers' Knowledge, there are no facts or circumstances that would reasonably be expected to give rise to a recall, withdrawal, suspension, quarantine, corrective action, safety alert or safety notice in respect of any product or service supplied by the Company.

(d) No product or service supplied by the Company is the subject of any pending or, to the Sellers' Knowledge, threatened investigation, inquiry or proceeding by any regulatory authority alleging that such product or service is defective, unsafe, non-compliant or otherwise requires recall or withdrawal.

The Company's relationships with its material customers and suppliers are, to the Sellers' Knowledge, satisfactory, and no material customer or supplier has given notice of an intention to terminate or materially reduce its business with the Company.

(a) The material customers and material suppliers of the Company, and the principal terms of the Company's trading arrangements with each of them, have been Disclosed to the Buyer.

(b) To the Sellers' Knowledge, the relationships between the Company and each material customer and each material supplier are satisfactory in all material respects, and the Company is not in material breach of any contract or arrangement with any material customer or material supplier.

(c) No material customer or material supplier has given written or oral notice to the Company of any intention to terminate, rescind, cancel, suspend or materially reduce its business with the Company, or to cease or materially reduce its purchases of products or services from, or its supply of products or services to, the Company.

(d) To the Sellers' Knowledge, no material customer or material supplier has ceased, or materially reduced, its business with the Company, or threatened to cease or materially reduce such business, since the Locked Box Accounts Date.

(e) No material customer or material supplier has, since the Locked Box Accounts Date, sought to renegotiate the material terms of its contract with the Company in a manner that would be materially adverse to the Company, and to the Sellers' Knowledge no such customer or supplier intends to do so.

The Company has not received a claim alleging a material defect in a product or service it has supplied.

(a) No claim has been made or received by the Company alleging any material defect, failure, malfunction, non-compliance or unsafe condition in, or any breach of specification or warranty in respect of, any product sold or

supplied or any service provided by the Company.

(b) No proceeding, arbitration or other dispute is pending or, to the Sellers' Knowledge, threatened against the Company alleging any such material defect, failure, malfunction, non-compliance or unsafe condition.

(c) To the Sellers' Knowledge, there is no pending or threatened product liability claim against the Company, and there are no facts or circumstances that would reasonably be expected to give rise to a product liability claim against the Company, in each case arising out of any product or service supplied by the Company.

(d) The Company has not, within the six years prior to the date of this Agreement, been required to settle or compromise any claim alleging a material defect in any product or service supplied by it, and no such claim remains outstanding.

The Company's standard terms of trading have been disclosed and are consistent with its dealings in practice.

(a) The Company's standard terms and conditions of purchase and sale, and any standard forms of quotation, order, acknowledgement, licence, service agreement, warranty or guarantee used by the Company in the ordinary course of its business, have been Disclosed to the Buyer.

(b) All material dealings by the Company with its customers and suppliers have been entered into and performed in accordance with the Company's standard terms and conditions, or on terms not materially less favourable to the Company, and no material dealings have been conducted on terms that deviate from such standard terms and conditions.

(c) There are no written or oral variations to the Company's standard terms and conditions that are currently in effect, and no course of dealing or practice exists that is inconsistent with such standard terms and conditions.

(d) To the Sellers' Knowledge, no customer or supplier of the Company has disputed, or purported to reject, the applicability of the Company's standard terms and conditions in respect of any material dealing during the period beginning on the date which is six months prior to the Locked Box Accounts Date and ending on the date of this Agreement.

SCHEDULE 10. W&I INSURANCE POLICY SUMMARY

Policy type

1(a) This Schedule is a factual summary of the buy-side warranty and indemnity insurance policy (the W&I Policy) obtained by the Buyer in connection with this Agreement.

1(b) The W&I Policy is a policy of insurance effected by the Buyer as principal and is not a guarantee, indemnity or other form of credit support provided by the Sellers or any other person.

1(c) The W&I Policy is subject in all respects to its own terms, conditions, limitations, exclusions and exceptions.

Insured party

2(a) The Buyer is the sole insured party under the W&I Policy.

2(b) No person other than the Buyer has any right to make a claim under the W&I Policy, and the W&I Policy is not obtained for the benefit of any other person.

Coverage period

3(a) In this Schedule, the Coverage Period means the period during which a claim may be notified to the insurer under the W&I Policy in accordance with its terms.

3(b) In respect of the Warranties other than the Fundamental Warranties and the Tax Warranties (the General Warranties), the Coverage Period is a period of six years from Completion.

3(c) In respect of the Fundamental Warranties, the Tax Warranties and the Tax Covenant, the Coverage Period is a period of ten years from Completion.

General scope of cover

4(a) The W&I Policy covers Loss (as defined in the W&I Policy) suffered or incurred by the Buyer arising from a breach of the Warranties or from a claim under the Tax Covenant.

4(b) Loss arising from a breach of the Warranties or a claim under the Tax Covenant is covered only where the relevant breach or claim is first notified to the insurer during the Coverage Period.

4(c) The W&I Policy is subject to the policy's own exclusions, exceptions, limitations, conditions and other terms, and nothing in this Schedule extends or varies the cover provided under the W&I Policy.

4(d) The W&I Policy does not cover Loss to the extent that such Loss is excluded by the policy's own exclusions.

Matters not covered by the Policy

The Policy shall not cover, and the Insurer shall have no liability in respect of, any claim (or any loss, damage, cost, expense or liability arising from or in connection with any claim) to the extent that such claim arises from or relates to:

(a) any matter fairly disclosed in the Disclosure Letter, including any matter fairly disclosed by or referred to in the facts, matters, documents or information comprised in the Disclosure Letter;

(b) any matter within the actual knowledge of the Buyer's own deal team as at the date of this Agreement, being each director, officer, employee, agent and adviser of the Buyer and of any of its affiliates who was involved in the negotiation, investigation, evaluation or execution of the transaction contemplated by this Agreement;

(c) any Warranty the subject matter of which is forward-looking or projection-based, including any Warranty as to future financial or trading performance, future results of operations, future financial condition, future prospects, future cash flows, or any projection, forecast, estimate, budget, plan or intention of the Company or any of its subsidiaries;

(d) any criminal fines or penalties, and any punitive, exemplary or other penal damages or sums, howsoever arising and whether imposed by a court, tribunal, governmental authority, regulatory body or otherwise.

Insurer's rights

The Insurer shall have the right:

(a) to require the Buyer and the Company to cooperate fully with the Insurer and to provide, and to procure that their respective officers, employees, agents, accountants, legal counsel and advisers provide, such information, records, documents, access to personnel and premises, and other assistance as the Insurer may reasonably require in connection with the investigation, evaluation, negotiation, defence or resolution of any claim under the Policy;

(b) to step into the Buyer's shoes and, by way of subrogation, to pursue, in the name of the Buyer or otherwise, any rights, remedies, claims, actions or proceedings against any third party other than the Sellers, and to settle, compromise, discontinue or abandon any such pursuit in the Insurer's sole discretion;

(c) to conduct its own investigation, at its own cost and expense, of any claim, including by engaging its own legal

counsel, accountants, loss adjusters or other experts, before admitting any claim, and the Insurer shall be under no obligation to admit or accept any claim unless and until it has completed such investigation to its satisfaction.

SCHEDULE 11. DEFINITIONS

"Accounts" means the balance sheet of the Company as at the Locked Box Date and the related statements of comprehensive income, changes in equity and cash flows for the financial period ended on the Locked Box Date, together with the notes to those statements and the accounting policies adopted in their preparation.

"Affiliate" means, in relation to any person, any other person that, directly or indirectly through one or more intermediaries, controls, is controlled by, or is under common control with, that first person; and in this definition, "control" means the power or right (whether arising by virtue of the ownership of shares or voting rights, by contract or otherwise) to direct or procure the direction of the affairs, management and policies of the relevant person.

"Books and Records" means all books, accounts, ledgers, files, invoices, vouchers, receipts, correspondence, agreements, contracts, deeds, records, lists, databases, data, computer programs, computer disks and other machine-readable media, and other materials and information of any kind, in whatever form or medium, owned, held or used by the Company and relating to the Business, the Company or any of its assets, undertakings or affairs.

"Business" means the business carried on by the Company as at the date of this Agreement.

"Business Day" means a day, other than a Saturday, Sunday or public holiday, on which banks are open for general business in London and in the jurisdiction in which the Company is incorporated.

"Cash" means all cash, cash equivalents and bank balances and deposits of the Company, in whatever currency, held at the Locked Box Date with any bank, building society, financial institution or similar person, excluding any such amounts which are not freely available to the Company.

"Companies Act" means the Companies Act two thousand and six and any statutory modification, consolidation or re-enactment of it for the time being in force.

"Company" means the company whose issued share capital is the subject of the sale and purchase provided for by this Agreement.

"Completion Date" means the date on which Completion occurs in accordance with this Agreement.

"Conditions" means the conditions to the Buyer's obligation to complete the purchase of the Shares, as set out in this Agreement, as the same may be waived, varied or supplemented from time to time in accordance with this Agreement.

"Confidential Information" means all information of a confidential or proprietary nature, in whatever form or medium, relating to the Company, the Business, the Shares, the Sellers, the Buyer or this Agreement, including technical, commercial, financial, operational, marketing and legal information, trade secrets, know-how, inventions, designs, customer and supplier lists and particulars, pricing information, business plans, forecasts and projections, employee and management information, and any other information derived from or based on any of the foregoing.

"Connected Person" means, in relation to any person, any Affiliate of that person, any relative of that person, any trust or settlement of which that person or any relative of that person is a settlor, trustee or beneficiary, and any director, officer, employee, consultant, agent or representative of any of the foregoing.

"Consideration" means the fixed consideration payable by the Buyer to the Sellers for the sale and transfer of the

Shares, as set out in this Agreement.

"Contract" means any contract, agreement, deed, commitment, undertaking, arrangement, obligation, licence, permit, authorisation or right, in each case whether oral or written, express or implied, formal or informal, legally binding or not, to which the Company is a party or by which the Company or any of its assets is bound or affected.

Definitions

In this Agreement and this Schedule, unless the context otherwise requires, the following words and expressions have the meanings set out below.

(a) Data Protection Legislation means all laws, statutes, subordinate legislation, regulations, rules, bye-laws, codes of practice, guidance, decisions, orders, directions and other binding obligations in force from time to time relating to the processing of personal data or to privacy, including the Data Protection Act and the UK General Data Protection Regulation, in each case as amended, re-enacted, extended or replaced from time to time.

(b) Data Room means the virtual data room established by or on behalf of the Sellers in connection with the Transaction, in the form and content made available to the Buyer and its advisers, together with any ancillary, supplemental or replacement data room, and all documents, files and information contained in it.

(c) Disclosure Letter means the disclosure letter from the Sellers to the Buyer dated on or about the date of this Agreement, including all documents, materials and information comprised in the Data Room and all schedules, annexes and other documents attached or referred to in that letter.

(d) Distributions means, in relation to any Group Company, any dividend, return of capital, repayment of share premium, redemption or repurchase of shares, interest or other payment in respect of any share capital, distribution, bonus, benefit in kind, or any other payment, transfer or benefit made or given by that Group Company to or for the benefit of any of its members or any other person, and any agreement, arrangement or obligation to make or give any of the foregoing.

(e) Encumbrance means any mortgage, charge, lien, pledge, hypothecation, security interest, retention of title, right of pre-emption, option, right of first refusal, right of first offer, assignment by way of security, trust arrangement, or any other encumbrance or third-party right or interest of any kind, and any agreement, arrangement or obligation to create, grant or give any of the foregoing.

(f) Environment means land, water, air, soil, subsoil, buildings, structures, natural resources, flora, fauna and all other living organisms, and any ecosystems or combinations of those.

(g) Environmental Claim means any claim, action, suit, proceeding, investigation, notice, demand, order, judgment or other communication made or threatened by any person against any Group Company, alleging any liability or obligation under any Environmental Law or in respect of any pollution, contamination, damage, injury or harm to the Environment.

(h) Environmental Law means all laws, statutes, regulations, rules, bye-laws, directives, orders, permits, consents, approvals, licences, codes of practice and other binding requirements in force from time to time relating to the Environment, including any requirement relating to the generation, use, storage, handling, treatment, discharge, emission, release or disposal of any substance capable of causing harm to the Environment.

(i) Event means any event, occurrence, fact, circumstance, change, condition, development, matter or thing, or any

combination of them, and any state of affairs arising from any of the foregoing.

(j) Financial Indebtedness means, in respect of any person, all indebtedness or liability of that person, whether actual, contingent or prospective, in respect of moneys borrowed or raised; any acceptance credit, documentary credit, guarantee or similar facility; any lease or hire purchase or conditional sale agreement which is or, in accordance with the applicable accounting principles, would be treated as a finance lease; any bond, note, debenture, loan stock or other security; any derivative, hedging or foreign exchange transaction; any guarantee, indemnity, suretyship, counter-indemnity or other assurance against financial loss; and the deferred purchase price of any asset or service, other than amounts due to trade creditors in the ordinary course of business.

(k) Group means the Company and each of its Subsidiaries from time to time, and references to a member of the Group shall be construed accordingly.

(l) Group Company means the Company or any of its Subsidiaries from time to time, and Group Companies means all of them.

(m) Group Relief means any relief, allowance, deduction, credit, set-off or repayment available under the taxation laws of the United Kingdom or any other jurisdiction, including any loss relief, group relief, consortium relief, capital allowance, management expense or other similar relief or allowance, and any right to claim, surrender, transfer or disclaim any of the foregoing.

(n) Guarantee means any guarantee, indemnity, suretyship, bond, standby letter of credit, comfort letter or other assurance, whether personal or by way of security, given by any person in respect of any obligation of another person.

Intellectual Property Rights means all rights, title and interest in and to intellectual property subsisting anywhere in the world, whether registered or unregistered, including: (a) patents, inventions, utility models, petty patents, supplementary protection certificates and rights in inventions; (b) copyright and related rights, including rights in software, source code, object code, databases, firmware, algorithms, websites and other digital assets; (c) trade marks, service marks, trade names, business names, logos, get-up, trade dress and domain names, and all goodwill associated with those rights; (d) registered designs, design rights, semiconductor topography rights and mask works; (e) rights in confidential information, trade secrets, know-how, technical data and proprietary processes; (f) moral rights and rights of publicity and privacy, in each case to the extent lawfully enforceable and assignable or licensable; (g) all applications, registrations, renewals, extensions, continuations, divisions, reissues, revivals and restorations of any of the foregoing, together with all rights to sue for past infringement, damages or profits, and all other rights of a similar nature.

Judgment means any judgment, order, decree, award, determination, decision, ruling, writ, injunction, sanction, penalty or assessment of any court, tribunal, arbitrator, governmental authority or regulatory body, whether domestic or foreign.

Key Employee means: (a) any director or senior executive of any Group Company; (b) any employee, officer or consultant of any Group Company who has responsibility for any material customer, supplier, product, technology, project or function of the Group; or (c) any employee of any Group Company identified as a key employee in the Disclosure Letter.

Knowledge means the actual knowledge of the Key Employees, after making due and careful enquiry of the senior management and such other employees, agents and professional advisers of the Group as would reasonably be expected to have actual knowledge of the relevant matter, and without any obligation to make independent verification or investigation.

Law means any applicable national, federal, state, provincial, municipal or local law, statute, ordinance, rule, regulation, code, directive, circular, policy, treaty, common law or principle of equity, and any judgment, order, decree, ruling, guidance, interpretation, permit, consent, approval, requirement or demand of any governmental authority or regulatory body.

Leakage means any of the following, other than any item which constitutes Permitted Leakage, to the extent occurring at any time on or after the Locked Box Date and before Completion, whether by a Group Company or any other person on its behalf: (a) any dividend, distribution, return of capital, redemption, purchase or other payment or transfer of value in respect of any shares, loans or other securities of any Group Company; (b) any payment of any management, monitoring, advisory, consultancy, service or other similar fee or charge by any Group Company; (c) any repayment or prepayment of, or payment of interest, discount or other amount in respect of, any intercompany loan or other intercompany balance owing to any Seller or any person connected with or acting on behalf of any Seller; (d) any loan, advance, credit, guarantee, indemnity, assignment or other financial accommodation or benefit given by any Group Company to any Seller or any person connected with or acting on behalf of any Seller; (e) any transfer, sale, lease, disposal or other dealing with any asset of any Group Company to or for the benefit of any Seller or any person connected with or acting on behalf of any Seller for consideration less than the market value of that asset; (f) any waiver, release, abandonment, forfeiture or forgiveness by any Group Company of any right, claim, receivable or other benefit for the benefit of any Seller or any person connected with or acting on behalf of any Seller; or (g) any agreement, arrangement, transaction or obligation to take any of the actions described in paragraphs (a) to (f) above, or any other transaction or arrangement that in substance has an economic effect equivalent to any of the foregoing.

Permitted Leakage means any of the following: (a) any Leakage expressly identified as permitted in the Disclosure Letter; (b) any payment, transfer or other transaction made or entered into by a Group Company in the ordinary course of business, on arm's length terms and consistent with past practice; (c) any payment, transfer or other transaction between or among Group Companies in the ordinary course of business and on arm's length terms; (d) any payment of tax, duty, levy, social security contribution or similar governmental charge by a Group Company in the ordinary course of business; (e) any payment of professional fees and expenses incurred by the Sellers or any Group Company in connection with the negotiation, preparation, execution and implementation of this Agreement; (f) any payment made by a Group Company to any Seller in respect of the discharge of any liability owed by that Group Company to that Seller, in each case on arm's length terms and in the ordinary course of business; (g) any distribution, dividend, payment or other transfer required by applicable Law or by any statutory or regulatory authority; or (h) any Leakage expressly contemplated by, and made in accordance with, this Agreement.

Lien means any mortgage, charge, hypothecation, lien, pledge, security interest, assignment by way of security, title retention arrangement, right of pre-emption, right of first refusal, option, privilege, easement, restriction, covenant,

encumbrance or other adverse claim of any kind.

Locked Box Accounts means the audited consolidated accounts of the Group for the financial period ended on the Locked Box Date, comprising: (a) the consolidated balance sheet as at the Locked Box Date; (b) the consolidated income statement, statement of comprehensive income, statement of changes in equity and cash flow statement for the financial period ended on the Locked Box Date; and (c) the notes, accounting policies and other statements or reports forming part of those accounts, in each case prepared in accordance with GAAP, adopted by the board of directors of the Company and audited by the Company's auditors.

Locked Box Date means the date shown as the balance sheet date in the Locked Box Accounts and by reference to which the Consideration is fixed.

Long Stop Date means the date falling six months after the date of this Agreement, or, if such date is not a Business Day, the next Business Day, or such later date as the Parties may agree in writing.

Losses means all losses, liabilities, claims, damages, awards, fines, penalties, costs, charges and expenses incurred or suffered by any person, including: (a) reasonable legal fees and other professional fees and disbursements; (b) any interest, penalties, surcharges or levies; and (c) any amounts paid in settlement of any claim or proceeding, together with all costs of enforcing any right or remedy under this Agreement.

Material Adverse Change means any event, change, condition, development, effect or occurrence that, individually or together with any other event, change, condition, development, effect or occurrence, has had or would reasonably be expected to have, a material adverse effect on the business, assets, liabilities, financial condition or results of operations of the Group taken as a whole, excluding any event, change, condition, development, effect or occurrence arising from or relating to: (a) general economic, political, social, financial or market conditions in any country or region; (b) any change in applicable Law or any change in generally accepted accounting principles or accounting standards; (c) any force majeure event, natural disaster, act of war, terrorism, civil unrest, epidemic or pandemic; (d) any matter disclosed in the Disclosure Letter; (e) any change affecting the industries, markets or sectors in which the Group operates generally; (f) the announcement, negotiation, execution or performance of this Agreement or the transactions contemplated by it, including any loss of, or change in, customers, suppliers, distributors, employees, regulators or others attributable to such announcement; or (g) any decline in the price of any securities of the Company or any failure by the Group to meet internal or external projections or forecasts, it being agreed that the underlying causes of any such decline or failure may be taken into account in determining whether a Material Adverse Change has occurred; provided that the exclusions set out in paragraphs (a), (b), (c) and (e) shall not apply to the extent that the relevant event, change, condition, development, effect or occurrence has a disproportionate effect on the Group relative to other participants in the industries or markets in which the Group operates.

Material Contract means any contract, agreement, arrangement, commitment, understanding, undertaking, licence, franchise, lease, tenancy or other instrument, whether written or oral, to which any Group Company is a party or by which any Group Company or any of its assets is bound, and which: (a) is not entered into in the ordinary course of business; (b) is a contract for the supply or purchase of goods or services with a customer or supplier that is material to the business of the Group; (c) involves any capital expenditure or any joint venture, partnership, consortium, strategic alliance or shareholder relationship; (d) contains any non-competition, exclusivity, most-favoured-nation,

change of control, no-hire, non-solicit or other restrictive covenant binding on any Group Company; (e) provides for, or is reasonably likely to give rise to, the incurrence, repayment, prepayment or guarantee of any indebtedness or financial accommodation by any Group Company; (f) is a lease, tenancy, licence or other occupancy arrangement in respect of any real property or material asset of the Group; (g) is a contract for the employment, engagement or appointment of any Key Employee; or (h) is otherwise material to the business, assets, financial condition or results of operations of the Group taken as a whole.

Parent

(a) means, in relation to any Person, any other Person which is a Holding Company of that Person from time to time;

(b) includes, without limitation, any Person which is a Holding Company of the Company.

Permitted Encumbrance

(a) means any Encumbrance which is one or more of the following:

(b) any Encumbrance created by or arising under this Agreement or any other Transaction Document;

(c) any Encumbrance arising by operation of law in the ordinary course of business, to the extent that the obligations secured by it are not due and payable or are being contested in good faith by the relevant Group Company and for which adequate reserves have been made in the Locked Box Accounts;

(d) any Encumbrance in respect of Taxes or other governmental levies or charges which are not due and payable or which are being contested in good faith by the relevant Group Company and for which adequate reserves have been made in the Locked Box Accounts;

(e) any Encumbrance disclosed in the Locked Box Accounts or in the Data Room;

(f) any Encumbrance securing obligations under any lease, hire purchase, conditional sale or other title retention arrangement entered into in the ordinary course of business, provided that such obligations are not overdue;

(g) any Encumbrance which constitutes, or which secures, Permitted Financial Indebtedness.

Permitted Financial Indebtedness

(a) means any Financial Indebtedness of any Group Company which is one or more of the following:

(b) Financial Indebtedness disclosed in the Locked Box Accounts;

(c) Financial Indebtedness owing by one Group Company to another Group Company;

(d) Financial Indebtedness incurred by a Group Company after the Locked Box Accounts Date in the ordinary course of trading, to the extent that the aggregate principal amount of such Financial Indebtedness outstanding at any time does not exceed the aggregate principal amount of Financial Indebtedness of the Group Companies repaid or discharged after the Locked Box Accounts Date and before the time at which such new Financial Indebtedness is incurred;

(e) any guarantee, indemnity or other assurance against financial loss given by a Group Company in respect of Financial Indebtedness of another Group Company which is permitted under this definition.

Permitted Leakage

(a) means any Leakage which is one or more of the following:

(b) any Leakage disclosed in the Locked Box Accounts or in the Data Room;

(c) any Leakage made or effected with the prior written consent of the Purchaser;

(d) any payment by a Group Company of fees, costs or expenses to any Seller or any member of the Seller's Group in respect of services rendered to the Group Companies in the ordinary course of business on arm's length terms;
(e) any amount paid by a Group Company to any Seller or any member of the Seller's Group in respect of Taxation for which such Seller or member of the Seller's Group is liable, to the extent required by the Tax Covenant;
(f) any payment by a Group Company to any Seller or any member of the Seller's Group in respect of any intra-group loan or other intra-group arrangement, to the extent that such payment is made on arm's length terms and in the ordinary course of business;
(g) any Leakage made, declared, paid or effected after the Locked Box Accounts Date and before Completion which is expressly contemplated by, or required to be made under, this Agreement or any other Transaction Document.

Permitted Transfers

(a) means any transfer of shares in the Company, or of any asset of any Group Company, which is one or more of the following:
(b) any transfer of shares in the Company by one Seller to another Seller;
(c) any transfer of shares in the Company by a Seller to a member of the Seller's Group, provided that the transferee executes a deed of adherence to this Agreement in a form reasonably satisfactory to the Purchaser;
(d) any transfer of an asset of a Group Company to another Group Company;
(e) any transfer of an asset of a Group Company in the ordinary course of trading on arm's length terms;
(f) any transfer of an asset of a Group Company which is disclosed in the Locked Box Accounts or in the Data Room.

Person

(a) means any individual, firm, company, corporation, government, state or agency of a state, local or municipal authority or government, public body, unincorporated association, trust, joint venture, partnership, organisation or other entity, whether or not having separate legal personality;
(b) includes, without limitation, any successor in title to such Person and any assignee or transferee of any rights or obligations of such Person under this Agreement.

Proceedings

(a) means any claim, demand, action, suit, arbitration, investigation, inquiry, review or other proceeding of any kind, whether civil, criminal, administrative, regulatory, investigative or otherwise;
(b) references to Proceedings include any appeal, review, rehearing or retrial in respect of any Proceedings and any fresh Proceedings commenced in respect of the same subject matter.

Purchaser

(a) means the person identified as the purchaser in this Agreement;
(b) includes its successors in title and permitted assigns.

Qualifying Lender

(a) means a lender which is resident in the United Kingdom for the purposes of United Kingdom taxation, which is not resident outside the United Kingdom for the purposes of United Kingdom taxation, and which carries on a trade in the United Kingdom through a permanent establishment;

(b) for the purposes of this definition, interest shall be treated as payable to a Qualifying Lender only to the extent that such interest is payable in respect of a loan relationship of a Group Company and is deductible by that Group Company in computing its taxable profits.

Regulatory Authority

(a) means any government, quasi-governmental, supranational, national, regional, state, municipal or local authority, court, tribunal, agency, department, commission, board, bureau, instrumentality, central bank or other regulatory, administrative, supervisory or governmental body or entity;

(b) includes any stock exchange or other self-regulatory organisation;

(c) includes any body or entity which succeeds to the functions of any of the foregoing.

Related Person

(a) means, in relation to any Person (the "Relevant Person"), any of the following:

(b) any member of the Relevant Person's Group;

(c) any director, officer, employee, agent, auditor, adviser, consultant or representative of the Relevant Person or of any member of the Relevant Person's Group;

(d) in the case of the Relevant Person being an individual, any member of the immediate family of the Relevant Person, any trust or estate in which such individual or any member of such individual's immediate family has an interest, and any other individual over whose affairs such Relevant Person exercises control;

(e) any Person which is directly or indirectly controlled by the Relevant Person or which controls the Relevant Person, and any Person which is directly or indirectly controlled by a Person which controls the Relevant Person.

Restricted Business

(a) means the business of the Group Companies as carried on at the date of this Agreement and as at Completion;

(b) includes any business which is the same as, or is substantially similar to or a natural extension of, the business referred to in paragraph (a).

Restricted Customer

(a) means any Person who, at any time during the twelve months ending on the Completion Date, was a customer or client of any Group Company;

(b) includes, without limitation, any Person who was a customer or client of any Group Company at the date of this Agreement.

Restricted Period

(a) means the period commencing on the Completion Date and ending on the fifth anniversary of the Completion Date;

(b) for the avoidance of doubt, the Restricted Period shall apply separately in respect of each covenant and, where a covenant is breached, the Restricted Period in respect of that covenant shall continue to run.

Sale Shares "Sale Shares" means all of the Shares held by the Sellers on the date of this Agreement, including any Shares acquired by any Seller after the Locked Box Accounts Date pursuant to a capitalisation of reserves or otherwise, and any shares deriving from or representing such Shares, in each case free from all Encumbrances and together with all rights and benefits attaching to them at Completion.

Sellers "Sellers" means the parties to this Agreement named as sellers in the signature pages, and "Seller" means any one of them.

Sellers' Knowledge "Sellers' Knowledge" means the actual knowledge of each Seller and, where a Seller is a body corporate, the actual knowledge of its directors and officers, in each case after due and careful enquiry.

Sellers' Representative "Sellers' Representative" means the person appointed by the Sellers to act as their representative for the purposes of this Agreement, with full authority to receive notices and communications, to make elections, to give consents and waivers, and to do all things on behalf of the Sellers as contemplated by this Agreement, and any successor appointed in accordance with this Agreement.

Sellers' Solicitors "Sellers' Solicitors" means the solicitors acting for the Sellers from time to time in connection with the preparation, negotiation and implementation of the Transaction Documents, as notified by the Sellers' Representative to the Buyer in writing.

Sellers' Warranties "Sellers' Warranties" means all warranties given or repeated by the Sellers in this Agreement, and all warranties given by the Sellers in any other Transaction Document.

Shares "Shares" means the ordinary shares in the capital of the Company, and "Share" means any one of them, in each case including any shares into which such shares are reconstituted, subdivided, consolidated or otherwise reclassified.

Statutory Accounts "Statutory Accounts" means the audited accounts of the Company in respect of each financial year of the Company ended at or before the Locked Box Accounts Date, in each case comprising the balance sheet as at the financial year end and the profit and loss account for that financial year, together with the related notes, and the directors' report and auditors' report on those accounts.

Subsidiary "Subsidiary" means any undertaking in which the Company, directly or indirectly: (a) holds a majority of the voting rights; (b) is a member and has the right to appoint or remove a majority of the board of directors; or (c) is a member and controls, alone or pursuant to an agreement with other members or shareholders, a majority of the voting rights, and "Subsidiaries" shall be construed accordingly.

Tax "Tax" means: (a) all forms of taxes, duties, levies, imposts, charges, fees, contributions, withholdings and deductions imposed, assessed, charged, collected or withheld by or payable to any Tax Authority, whether in the United Kingdom or elsewhere, and all national insurance, social security, pension, payroll and similar contributions; (b) all liabilities in respect of any amount referred to in paragraph (a) of this definition that are payable by any person by reason of statute, contract, guarantee or otherwise; and (c) all interest, penalties, fines, surcharges, costs and other charges incurred in connection with or as a consequence of any amount referred to in paragraph (a) or paragraph (b) of this definition.

Tax Authority "Tax Authority" means any national, federal, state, regional, municipal, local or other governmental, fiscal, revenue, customs or excise authority, body, agency, official or person in any jurisdiction having responsibility for the assessment, determination, collection, administration or enforcement of Tax, including any court or tribunal in connection with any proceedings relating to Tax.

Tax Liability "Tax Liability" means any liability or obligation to pay, or to account for, Tax, whether actual or contingent, including any liability: (a) as a result of being or having been a member of a group of companies for the

purposes of any Tax; (b) as a result of any obligation to indemnify or compensate any person in respect of Tax; or (c) under any agreement, arrangement, settlement or compromise with any Tax Authority relating to Tax.

Transaction Documents "Transaction Documents" means this Agreement, the Disclosure Letter, any ancillary agreement or instrument entered into pursuant to this Agreement or at Completion, and any other document expressed by the parties to constitute a Transaction Document, in each case together with any amendments, variations or supplements made in accordance with this Agreement.

Transfer Date "Transfer Date" means the date on which Completion takes place.

In this Agreement, the following words and expressions shall have the following meanings:

W&I Insurer means the insurer or insurers underwriting the W&I Policy, as named in the W&I Policy.

W&I Policy means the warranty and indemnity insurance policy (including any binder, endorsement, replacement policy, side letter and any other ancillary document relating to it) entered into or to be entered into by the Buyer with the W&I Insurer in connection with this Agreement in respect of the Warranties and the Tax Covenant, as amended, supplemented, novated or replaced from time to time in accordance with its terms, and includes any policy of co-insurance or reinsurance arranged by the W&I Insurer.

Warranties means (a) the warranties given by the Sellers in this Agreement and in the Disclosure Letter; (b) the warranties given by the Company in this Agreement; (c) the Fundamental Warranties; (d) the Business Warranties; (e) the Tax Warranties; and (f) any other warranty, representation or statement of fact made by any Seller or the Company in this Agreement or in the Disclosure Letter, in each case as qualified by the Disclosure Letter and by the express terms of this Agreement.

Warranty Claim means any claim by the Buyer against any of the Warrantors for breach of any of the Warranties, including (a) a claim for any loss, liability, cost, expense or damage or for any amount payable by way of indemnity under the Tax Covenant; (b) a claim for any matter which would constitute a breach of any of the Warranties but for any limitation, qualification or disclosure contained in the Disclosure Letter or in this Agreement; and (c) a claim for breach of any of the Fundamental Warranties, but shall not include any claim under the W&I Policy.

Warranty Period means, in relation to each Warranty, the period beginning on Completion and ending on the date on which that Warranty ceases to be capable of giving rise to a Warranty Claim in accordance with this Agreement, as such period may be extended or suspended in accordance with this Agreement with respect to any matter notified to the Warrantors before the end of the period.

Warrantors means the Sellers and the Company, and any other party to this Agreement by whom any of the Warranties are given.

Working Hours means the hours from nine o'clock in the morning to five o'clock in the afternoon on any Business Day.

Written Statement means any certificate, statement, report, minutes, notice, invoice, demand or other document in writing, including any electronic mail or other electronic communication, delivered by one party to another pursuant to this Agreement, and writing and in writing shall be construed accordingly.

Year means a period of twelve months beginning on the first day of January and ending on the thirty-first day of December, except that, in relation to the Company and its accounts, Year shall mean the financial year of the

Company.

In this Schedule, unless the context otherwise requires, the following words and expressions have the meanings given below.

Business Day Any day (other than a Saturday or Sunday) on which banks are open for general business (a) in the City of London; and (b) if any Group Company is incorporated or has its principal place of business outside England and Wales, in the principal financial centre of the jurisdiction in which that Group Company is incorporated or has its principal place of business.

Books and Records All books, records, files, ledgers, invoices, receipts, vouchers, correspondence, customer and supplier lists, pricing records, employee records, contracts, agreements, title deeds, certificates, permits, licences, electronic data, databases, computer files, financial and management accounts, tax records and all other documents and records of any kind (in whatever form or medium) relating to the Business or any Group Company, including (a) all records required to be kept for taxation purposes; (b) all records required to be kept by applicable law or regulation; and (c) all data stored in electronic form.

Claim Any claim, demand, action, suit, proceeding, litigation, arbitration, investigation, enquiry, complaint, dispute or other similar matter, whether civil, criminal, administrative, regulatory or arbitral, made or threatened by any person, and includes any appeal, review or other further proceeding in respect of any of the foregoing.

Disclosure Bundle The electronic data room established by or on behalf of the Sellers in connection with the sale and purchase of the Company and made available to the Buyer and its advisers, together with (a) all documents contained in that data room; (b) all documents delivered or made available to the Buyer or its advisers by or on behalf of the Sellers before signing; and (c) the Disclosure Letter, in each case in the form existing at signing.

Excluded Liability Any liability of any Group Company which (a) arises out of or is attributable to any matter fairly disclosed in the Disclosure Bundle; (b) arises out of or is attributable to any change in law, accounting policy or accounting practice after signing; (c) is caused by any act or omission of the Buyer or any Group Company after Completion; or (d) constitutes a liability owed by a Group Company to the Buyer or to another Group Company.

Fairly Disclosed A matter shall be fairly disclosed if it is disclosed in the Disclosure Bundle in a manner which is clear, specific and reasonably sufficient to enable a buyer of a company carrying on a business substantially similar to the Business, acting by its professional advisers, to identify the matter as one that would or might reasonably be expected to give rise to a breach of the warranty or other provision of this Agreement to which it is relevant, and no matter shall be fairly disclosed by reason only of being included in a general or generic disclosure or by reason of any statement that information is subject to a warranty or other general caveat.

Indemnity Claim Any claim made by the Buyer under or pursuant to any indemnity, covenant or undertaking given by the Sellers in this Agreement, including (a) a claim for breach of any such indemnity, covenant or undertaking; and (b) any claim under any tax covenant or tax indemnity in this Agreement, together with all losses, liabilities, costs, charges, claims, demands, actions, proceedings, damages and expenses (including professional fees and expenses) directly or indirectly suffered or incurred by the Buyer or any Group Company in connection with the subject matter of the claim.

Insurer In respect of any insurance policy, the insurance undertaking, insurer, underwriter or other person from time

to time assuming liability under that policy, together with any successor, assignee or transferee of the rights or obligations of that person under that policy.

Notice Any notice, demand, consent, approval, waiver or other communication given under or in connection with this Agreement, including any notification given by one Party to another Party in connection with any Claim or Indemnity Claim, in each case in writing.

Ordinary Course The conduct of the Business in the ordinary and usual course and in a manner which (a) is consistent with the past practice of the Group Companies and with prudent commercial management; (b) is not exceptional, unusual or in contemplation of the Transactions; and (c) does not require the consent of any governmental, regulatory or statutory authority or of any other person.

Person Any individual, firm, company, corporation, partnership, association, trust, unincorporated organisation, governmental, regulatory or statutory authority, agency, body, court, tribunal or other entity, whether or not having separate legal personality.

Retention Period The period commencing on the Completion Date and ending on the date falling six years after the Completion Date.

Tax Authority Any governmental, regulatory or statutory authority, agency, body, court, tribunal or official having authority to impose, assess, administer, collect or enforce taxation, or to conduct any review, enquiry, appeal or other proceeding in connection with taxation, in any jurisdiction.

Third Party Claim Any Claim made or threatened by any person other than a Party to this Agreement against the Buyer or any Group Company which, if adversely determined, would reasonably be expected to give rise to an Indemnity Claim.

SCHEDULE 12. GUARANTEE BY BUYER'S PARENT

Guarantee and Indemnity

(a) The Guarantor (being the ultimate parent undertaking of the Buyer) irrevocably and unconditionally guarantees to the Sellers, as a continuing guarantee, the due and punctual performance by the Buyer of all Payment Obligations. For the purposes of this clause, "Payment Obligations" means all obligations of the Buyer to pay money to the Sellers under or pursuant to this Agreement, including any damages, losses, costs, expenses, interest and other amounts payable by the Buyer to the Sellers in respect of any breach of its obligations under this Agreement.

(b) If and whenever the Buyer fails to pay any amount falling due under this Agreement by the time required, the Guarantor shall, forthwith upon written demand from the Sellers, pay that amount in full to the Sellers, and the Guarantor shall do so as a primary obligor and not merely as a surety.

(c) The Guarantor irrevocably and unconditionally agrees to indemnify the Sellers, on demand, against all losses, claims, damages, liabilities, costs and expenses which the Sellers may incur or sustain as a result of or in connection with any failure by the Buyer to perform its Payment Obligations.

(d) This guarantee is a guarantee of payment and performance and not merely a guarantee of collection. The Sellers shall not be obliged, before enforcing this guarantee against the Guarantor, to take any action or obtain judgment against the Buyer, to enforce any security or other right, or to make any demand upon the Buyer.

(e) The liability of the Guarantor under this clause shall not be discharged or otherwise affected by any invalidity,

illegality, unenforceability or frustration of this Agreement, or by any act, omission, matter or thing which, but for this provision, would reduce, release or prejudice any guarantee from the Guarantor.

Continuing Guarantee

(a) This guarantee is a continuing guarantee and shall remain in full force and effect until all Payment Obligations have been irrevocably and unconditionally performed or discharged in full.

(b) This guarantee is not discharged, varied or otherwise affected by any variation of this Agreement, or by any forbearance, indulgence, waiver, compromise, release, renewal or extension of time granted to the Buyer, or by any other dealing between the Sellers and the Buyer, in each case whether with or without the consent of or notice to the Guarantor.

(c) Without limiting paragraph (b), the Sellers may, in their absolute discretion and without notice to or consent from the Guarantor, vary or amend this Agreement, grant time or other indulgence to the Buyer, or compromise or release any right against the Buyer, and none of those matters shall reduce, discharge or otherwise affect the liability of the Guarantor under this clause.

(d) The Guarantor waives any right to require the Sellers to proceed against or exhaust any recourse against the Buyer, or to enforce any other security or right, before enforcing this guarantee.

No Set-Off or Deduction

(a) All payments by the Guarantor under this clause shall be made in full in the currency in which the relevant Payment Obligation is due, without set-off, counterclaim, deduction or withholding, except to the extent required by law.

Reinstatement

(a) If any payment made or purported to be made by the Buyer or the Guarantor in respect of any Payment Obligation under this Agreement is avoided, set aside, or ordered to be repaid pursuant to any enactment, law, insolvency proceeding or otherwise, then the liability of the Guarantor under this clause shall continue and be reinstated as if that payment had not been made.

Waiver of Prior Claim and Marshalling

(a) The Guarantor irrevocably and unconditionally waives any right, whether arising by law, in equity or under statute, to require the Sellers, or any of them, to make demand on, or to commence or maintain proceedings against, or to enforce any judgment, order, security or other right or remedy against, the Buyer before making a claim under this guarantee.

(b) The Guarantor irrevocably and unconditionally waives any right to require the Sellers to proceed first against, or to exhaust any assets comprised in or subject to any security or other arrangement held by or for the benefit of the Sellers in respect of the Buyer’s payment obligations under this Agreement, before making a claim under this guarantee.

(c) The Sellers may make a claim under this guarantee, and may commence proceedings against the Guarantor in respect of that claim, without first taking any step against the Buyer and without first obtaining judgment against the Buyer.

(d) No delay, indulgence, compromise, release, variation, renewal or replacement by the Sellers of any right or

security in respect of the Buyer's payment obligations under this Agreement shall operate to discharge or reduce the liability of the Guarantor under this guarantee.

Continuation and Duration of Guarantee

(a) This guarantee is a continuing guarantee and shall remain in full force and effect until the date on which all payment obligations of the Buyer under this Agreement have been performed in full.

(b) Upon the performance in full of all payment obligations of the Buyer under this Agreement, this guarantee shall automatically terminate and the Guarantor shall be released from all future obligations under this guarantee, without prejudice to any rights or liabilities which have accrued before that date.

(c) The liability of the Guarantor under this guarantee shall not be discharged, diminished or otherwise affected by any variation, amendment, waiver, compromise or indulgence in respect of this Agreement or any agreement or arrangement between the Sellers and the Buyer, any invalidity, illegality or unenforceability of any provision of this Agreement, any insolvency, bankruptcy, liquidation, administration, receivership, scheme of arrangement, moratorium, composition or analogous proceeding affecting the Buyer, any release or replacement of the Buyer, any merger, conversion or consolidation of the Buyer or the Guarantor, or any other act, omission, event or circumstance which would, but for this paragraph, operate to discharge, diminish or otherwise affect the liability of the Guarantor under this guarantee.

(d) The Guarantor's obligations under this guarantee are principal obligations, and the Guarantor is liable under this guarantee as principal debtor in respect of the Buyer's payment obligations under this Agreement.

Representations and Warranties of the Guarantor

(a) The Guarantor is a company duly incorporated and validly existing under the laws of its jurisdiction of incorporation and has full corporate power and authority to own its assets and to carry on its business as it is now being conducted.

(b) The Guarantor has full corporate power and authority to give this guarantee and to perform its obligations under this guarantee.

(c) The execution and delivery by the Guarantor of this guarantee, and the performance by the Guarantor of its obligations under this guarantee, have been duly authorised by all necessary corporate or other action on the part of the Guarantor and require no further consent, authorisation or approval of any governmental or other authority.

(d) This guarantee constitutes a valid and binding obligation of the Guarantor, enforceable against the Guarantor in accordance with its terms, subject to any applicable bankruptcy, insolvency, administration, moratorium, reorganisation or other similar laws affecting creditors' rights generally and to general principles of equity.

(e) The Guarantor acknowledges that the Sellers have agreed to enter into this Agreement in reliance on the representations and warranties set out in this Clause.

SCHEDULE 13. DISCLOSURE LETTER MECHANICS

For the purposes of this Agreement, the Warranties are given subject to, and shall be qualified by, the Disclosure Letter. A matter that is fairly disclosed against a Warranty shall not constitute a breach of that Warranty and shall not give rise to any claim by the Buyer against the Sellers under this Agreement in respect of that Warranty.

A matter is fairly disclosed against the Warranties if it is disclosed in the Disclosure Letter with sufficient detail and

clarity that a reasonable buyer experienced in transactions of the kind to which this Agreement relates would understand (a) the nature and scope of the matter, and (b) the extent to which it may be relevant to the accuracy of the Warranties.

A matter may be fairly disclosed (a) specifically, by a disclosure which refers expressly to one or more Warranties; or (b) generally, by a disclosure which is made in the Disclosure Letter and which satisfies the standard described in the immediately preceding paragraph. It shall not be necessary for a disclosure to contain a cross-reference to any particular provision of the Warranties Schedule if the relevance of the matter to the Warranties is reasonably apparent on the face of the disclosure.

In determining whether a matter is fairly disclosed by general disclosure, regard shall be had to all information which the Buyer or the Buyer's advisers would obtain in the course of such searches of public registers as would reasonably be expected to be carried out by a reasonable buyer experienced in transactions of the kind to which this Agreement relates. Without limiting the immediately preceding paragraph, a matter appearing in a public register which the Buyer or the Buyer's advisers would reasonably be expected to search in connection with a transaction of the kind to which this Agreement relates shall be deemed to be sufficient disclosure against the Warranties by way of general disclosure, and no specific cross-reference in the Disclosure Letter to the relevant register, entry or matter shall be required.

Where a matter is disclosed against any one Warranty, (a) it shall be deemed to be disclosed against every other Warranty to the extent that its relevance to such other Warranty is reasonably apparent on the face of the disclosure; and (b) the Disclosure Letter need not identify the other Warranty, and no specific cross-reference to the other Warranty shall be required. For the avoidance of doubt, a matter disclosed against one Warranty shall not be deemed to be disclosed against any other Warranty unless its relevance to such other Warranty is reasonably apparent on the face of the disclosure.

Updating the Disclosure Letter

The Seller shall prepare and deliver to the Buyer a bring-down disclosure letter (the "Bring-Down Disclosure Letter") in accordance with this Schedule and the Completion Deliverables schedule. The Bring-Down Disclosure Letter shall be delivered not later than five Business Days before the Completion Date and shall be in writing and signed by the Seller.

The Bring-Down Disclosure Letter shall update the Disclosure Letter so that the Disclosure Letter, together with the Bring-Down Disclosure Letter, discloses all matters, circumstances and events which:

(a) arise or occur after the date of this Agreement and on or before the date of the Bring-Down Disclosure Letter; and

(b) would, had they arisen or occurred on or before the date of this Agreement, have been required to be disclosed in the Disclosure Letter so as to make the Warranties true and accurate and not misleading.

The Bring-Down Disclosure Letter shall be prepared in the same form, order and structure as the Disclosure Letter and shall state, in respect of each matter disclosed, the Warranty or Warranties to which it relates.

Each matter disclosed in the Bring-Down Disclosure Letter shall be set out with sufficient detail to constitute Fair Disclosure and to identify the nature, scope and extent of the matter.

The Bring-Down Disclosure Letter shall not include any matter, circumstance or event which arose or occurred on or before the date of this Agreement.

The Seller shall not be entitled to deliver any further update to or revision of the Disclosure Letter or of the Bring-Down Disclosure Letter after delivery of the Bring-Down Disclosure Letter, except with the prior written consent of the Buyer.

Effect on the Bring-Down Condition

The condition to Completion requiring the Warranties to be repeated at Completion (the "Bring-Down Condition") shall be applied and construed with reference to the Disclosure Letter as updated by the Bring-Down Disclosure Letter.

For the purpose only of determining whether the Bring-Down Condition is satisfied, a matter disclosed in the Bring-Down Disclosure Letter shall be treated as if it had been disclosed in the Disclosure Letter on the date of this Agreement and shall qualify the relevant Warranty or Warranties to the same extent as any other matter disclosed in the Disclosure Letter.

If the Seller fails to deliver the Bring-Down Disclosure Letter in accordance with this Schedule, the Bring-Down Condition shall be treated as not satisfied, unless the Buyer agrees otherwise in writing.

If a Newly Disclosed Matter would, but for its disclosure in the Bring-Down Disclosure Letter, cause any of the Warranties to be untrue or inaccurate at Completion, then, to the extent that the Newly Disclosed Matter is Fair Disclosure, the Bring-Down Condition shall be treated as satisfied in respect of that matter.

To the extent that a Newly Disclosed Matter is not Fair Disclosure, it shall be treated as not disclosed, and the Bring-Down Condition shall be treated as not satisfied in respect of that matter.

If any Newly Disclosed Matter is a Material Matter, the Buyer may elect, in its absolute discretion, not to complete the purchase of the Shares by giving written notice to the Seller within five Business Days after receipt of the Bring-Down Disclosure Letter. The Buyer may make such election whether or not the Bring-Down Condition would otherwise be satisfied in respect of that matter. Pending the expiry of that five Business Day period, Completion shall not be required to occur.

If the Buyer elects not to complete pursuant to the immediately preceding paragraph, this Agreement shall terminate automatically on service of such notice, without prejudice to any accrued rights or liabilities of the parties arising before such termination and without prejudice to the provisions of this Agreement which are expressed to survive termination.

Effect on Warranty Claims

Where a matter is Fair Disclosure and is disclosed in the Bring-Down Disclosure Letter in accordance with this Schedule, such disclosure shall operate as a full defence to any claim by the Buyer for breach of any Warranty to which the matter relates, to the extent of the matter disclosed, and the relevant Warranty shall be deemed to be qualified by such disclosure for the purpose of any such claim.

For the avoidance of doubt, fair disclosure in the Bring-Down Disclosure Letter shall not limit, prejudice or affect any right or remedy of the Buyer in respect of any matter which is not Fair Disclosure, including any right to elect not to complete, any right to terminate this Agreement, and any right to make a claim for breach of Warranty or for

breach of any other provision of this Agreement.

Nothing in this Schedule shall constitute a defence to any claim for breach of any Warranty in respect of any matter arising, occurring or existing on or before the date of this Agreement, unless such matter was disclosed in the Disclosure Letter on or before the date of this Agreement.

Interpretation

Capitalised terms used in this Schedule shall have the meanings given to them in this Agreement unless otherwise defined in this Schedule.

In this Schedule, "Fair Disclosure" means disclosure made in the Disclosure Letter or the Bring-Down Disclosure Letter with sufficient detail and specificity to enable a reasonable buyer to identify the nature, scope and extent of the matter disclosed and to make its own independent assessment of the effect of that matter on the Company and on the Warranties to which it relates.

In this Schedule, "Material Matter" means a Newly Disclosed Matter which, individually or together with all other Newly Disclosed Matters, has or would reasonably be expected to have a material adverse effect on the assets, business, financial condition, results of operations or prospects of the Company Group taken as a whole, or on the ability of the Buyer to acquire and hold the Shares pursuant to this Agreement.

In this Schedule, "Newly Disclosed Matter" means a matter, circumstance or event disclosed in the Bring-Down Disclosure Letter which is not also disclosed in the Disclosure Letter as at the date of this Agreement.